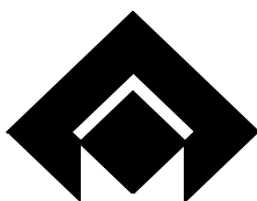


TENDER DOCUMENT

OPEN TENDER NOTICE No.: SGW/CC/24-25/02/OTE/02, DATE:
10/04/2024

NAME OF WORK: Offloading, Machining, Balancing, Heat Treatment, Embossing of Alloy Steel hammers for Coal Crushers-
Drg No- 001.027.00.057 A/c BSL - 2106 Nos (56 sets, One set= 36 Nos).

- Order will be distributed in the Ratio of 70:30 Basis.
- Price to be quoted for total 2016 Nos in buy junction portal.



STEEL AUTHORITY OF INDIA LIMITED

SAIL GROWTH WORKS, KULTI

P.O. KULTI, DISTT. BURDWAN (W.B.), PIN-713 343

PHONE: 0341-2515377/2515291/2515901/Mob: 9477702447/8597675431

**E-MAIL: burman.sumit@mjunction.in/
rsmahawar66@sail.in/sumitburman942@gmail.com**

Techno-Commercial Bid (Part - I)

A BRIEF ABOUT SAIL GROWTH WORKS, KULTI

SAIL Growth Works, Kulti, a Unit of Steel Authority of India Limited, is under Burdwan District of West Bengal and is situated at a distance of about 16 kilometers from Asansol on Howrah-New Delhi Grand Chord route. It is also well connected with a number of big cities like Kolkata, Patna, Dhanbad and Jamshedpur by road.

Presently the Operations at Non-Ferrous Foundry, Steel Foundry as well as Machine Shop, and other associated Utilities and Services, are being carried out at SGW, Kulti.

SAIL Growth Works, Kulti has Non ferrous & Steel Foundries, Machine Shops and associated utilities and services, Structural Shops etc.. The Township of Kulti has about 2300 houses and spread over an area of 597 acres with Road network.

In view of the above Offloading, Machining, Balancing, Heat Treatment, Embossing of Alloy Steel hammers for Coal Crushers- Drg No- 001.027.00.057 A/c BSL- 2016 Nos (56 sets, One set= 36 Nos), this Open Tender is being floated.

CHECK LIST FOR TENDERERS:-

Sl. No.	Documents/Information to be submitted with the Tender	Yes/No
i)	Whether each page of the Tender document signed	
ii)	Whether Techno-Commercial Bid (Part-I) is attached with <u>acknowledgement slip</u> of submission of on line price bid (Refer Mode of submission of tender para) and EMD sealed in separate envelopes and then all these envelopes sealed in a bigger envelope and properly super scribed with tender number and name of work.	
iii)	Whether EMD / Bid-Securing Declaration submitted as prescribed	
iv)	Whether Annexure-3 <u>NON-COLLUSIVE TENDERING CERTIFICATE submitted as prescribed</u>	
v)	Whether GST Registration Number and a Copy of same provided	
vi)	Whether Permanent Account Number and a Copy of PAN Card provided	
vii)	Whether West Bengal Professional Tax Payment Certificate, if applicable, provided	
viii)	Whether details of Bank particulars (Name of the Bank, Branch, Type of Account and the Account No.) provided	
ix)	Whether type of Firm has been mentioned and supporting documents provided	
x)	Whether the Declaration, that the Site has been inspected and fully examined, has been made as per the enclosed Annexure-II (If attached)	
xi)	Whether all the three Declarations, as given in the Tender document, have been filled in and signed	
xii)	Whether the quoted Rates are inclusive of various Taxes & Duties except GST, as per requirement of the Tender	
xiii)	Whether following documents, in support of Eligibility Criteria as per Clause-4 of 'Special Conditions of Contract' have been provided; i) Documentary evidence in support of work experience ii) Proof of sound financial capability	
xiv)	One valid email address in their offer for all future correspondences	

NOTE:

- The Tenderers, in their own interest, are advised to check through the above Checklist and make sure that the relevant documents/information, as required, has been provided before submitting the Tender. Call for any clarifications.***
- Submission of physical sealed Price Bid along with the tender document or in any other form/format will lead to rejection of offer.**
- IMPORTANT NOTE: PLEASE NOTE THAT THE TENDERER MUST PROVIDE ONE VALID EMAIL ADDRESS AND MOBILE NO IN THEIR OFFER.**

INVITATION TO TENDER

Sealed tenders are invited from bonafide, experienced and resourceful Contractors for the following Work at SAIL Growth Works, Kulti, PO- Kulti, Distt.- Paschim Burdwan (W.B.), PIN – 713 343. The Scope of Work, Terms & Conditions and other details are given below;

Sl. No.	Item description	Details
1.	Tender Notice No. & date	SGW/CC/24-25/02/OTE/02, DATE:10/04/2024
2.	Name of Work	Offloading, Machining, Balancing, Heat Treatment, Embossing of Alloy Steel hammers for Coal Crushers- Drg No-001.027.00.057 A/c BSL- 2016 Nos (56 sets, One set= 36 Nos).
3.	Mode Of Tender	OTE Followed By Reverse Auction (RA)
4.	Split of Rates	Order to be distributed in the ratio of 70:30 basis.
5.	Period of Contract	As per scope of work.
6.	Earnest Money Deposit (EMD) / Bid-Securing Declaration	In place of EMD, Bidder may submit a duly signed Bid Securing Declaration (Annexure-I).
7.	<u>DOWNLOADING OF TENDERDOCUMENT</u>	From the website https://www.sailtenders.co.in . (Under the link “search tenders”, Plant/Unit as “SAIL Growth Works (SGW)”). No additional cost is required to be deposited towards the cost of tender document. However, tenderers may opt to collect the complete document from SAIL without any charge if they are unable to download it from the website.
8.	Period of downloading of Tender document	From: 10/04/2024 to 24/04/2024
9.	Date of Pre-bid discussion	Tenderer who may wish to have pre bid discussions may come on any date Before dropping the tender document in the office of GM (CC, M/C Shop & P. Shop), SGW, Kulti.
10.	Last date and time of submission of Tender	25/04/2024 by 3-30 P.M.
11.	Tender opening date and time	25/04/2024 at 4-00 P.M.
12.	Paying Authority	Dy. MANAGER (F & A), SGW, Kulti
13.	Validity of Tender	60 days from the date of opening of the price bid/Reverse Auction. Prior withdrawal of the tender after opening shall amount to forfeiture of EMD.
14.	Bidding Basis (for On - Line Reverse Auction)	Rates are to be quoted on overall basis i.e for total 2016 Nos Excluding GST.
15.	Price Bid (Special Term)	On Line Price Bid is to be submitted on MJ's Byjunction portal at Link https://buyjunction.in and get an acknowledgement slip of on line submission and attach this acknowledgement slip along with the techno commercial offer. Refer “ Submission of Offer “ <i>For normal adequate number of offers received, price will be obtained through On - Line Reverse Auction on the platform of mjunction services limited.</i> <u>Note:</u> RA Conducted as per new RA Guide lines which will be Communicated before RA by mjunction. The same are attached in this tender documents also.

1. MODE OF SUBMISSION OF TENDER:

The Tender consists of the following two Parts:

Part – I : Tender Document (Techno commercial offer) along with **Acknowledgement Slip ***

Part-II: Conduction of RA among techno commercially accepted tenderers

The entire Tender document, except the Price-Bid containing the “Schedule of Rates”, constitutes Part-I of the Tender. All Documents/Information, required as per the tender, are to be submitted along with Part-I of the Tender only.

- **The Tenderer should detach the page containing the acknowledgement Slip of Mj Portal where Price Bid was submit in MJ's Platform at <https://buyjunction.in> Portal and obtain an acknowledgement Slip the same required to be submitted along with Techno-Commercial offer.**
- **Note: Submission of physical sealed Price Bid along with the tender document or in any other form/format will lead to rejection of offer.**

Apart from the above, the Earnest Money Deposit (EMD)/Bid Securing shall be enclosed in a separate sealed cover.

There shall therefore be following separately sealed envelopes initially;

- i) Envelope containing Techno-Commercial Offer (Part-I) of the Tender containing the:
 - Entire Tender document as well as all Documents/Information required as per the Tender. The envelope should be marked as **“Techno-Commercial Offer”**.
 - Acknowledgement Slip of Online Price bid submitted in MJ's Platform at <https://buyjunction.in> Portal.
- ii) Envelope containing the Earnest Money Deposit. The envelope should be marked as **EMD- Earnest Money Deposit/ Bid-Securing Declaration.**

All the above envelopes shall then be put inside a bigger envelope and properly sealed. The Name of the Work, Tender Notice No. and Tender opening date shall be mentioned on the face of the envelope and the same shall be dropped in the **Tender Box** kept in the Office of M-Junction -SAIL GROWTH WORKS-PO: KULTI- DISTT: PASCHIM BARDHMAN-W.B. PIN: 713343) **on or before the last date** of submission of the Tender. The Tenders can also be sent by Registered Post or Courier, however, delayed delivery of Tenders shall not be entertained.

Note:-

- The tender can send the documents either through courier /speed post/by hand or may send scanned copies of all tender documents duly signed and stamped through mail (less then 15 MB file) , in the mail ID mentioned in the tender document.
- A line of confirmation of dropping Tender document in mail be given in SMS in both number 9477702447 & 9007910436)
- Ensure that the price bid is submitted on Link mentioned above for all the mode of submission of tender document.

2. METHOD FOR OPENING OF THE TENDER:

If the prescribed norm of the Company for opening of Tender is met, then the main sealed envelope containing all documents /sealed envelopes, shall be opened as per the given Schedule in presence of the Tenderers or their authorized representatives who may wish to be present during Tender opening. Immediately thereafter **on the same day, the envelope containing Earnest Money Deposit (EMD)/ Bid Securing Declaration (Annexure-I), shall be opened.**

The Part-I of the Tender of only those tenderers, whose Earnest Money Deposit (EMD)/ Bid Securing Declaration (Annexure-I) will be found in order and submitted as prescribed above, shall be opened immediately thereafter, otherwise the offer will be considered as invalid and Techno-Commercial Offer/Bid (Part-I of the Tender) of the same will not be opened.

The Tenders, after opening, shall be evaluated at a later date. Only those tenders which are suitable techno commercially will be eligible for participation in the on-line negotiation mechanism (reverse auction) to be organized on the on-line platform of m-junction services Limited.

3. EXEMPTION FROM SUBMISSION OF 'EMD':

Micro & Small Enterprises (MSEs/PSUs/Government Undertakings and Co-operative Societies/ Start-ups as recognized by the Department for Promotion of Industry and Internal Trade (DPIIT) etc, may be exempted from submission of EMD as per extant Government policy. For MSEs, the exemption will be extended on the basis of:

- 1) Self-certified copy of Udyam Registration Certificate.
- 2) The Concerned MSE is registered in MSME databank
- 3) MSE is registered for given scope of job/Procurement

SSI/NSIC certificate holders are also exempted from submitting EMD.

NOTE:

1. Tender document is also available on the SAIL website at www.sailtenders.co.in it shall be responsibility of the persons submitting the tender to ensure that the tenders have been submitted in the formats and as per the terms and conditions prescribed in the SAIL website and no change is made therein before submission of their tender. In the event of any doubt regarding the terms and conditions / formats, the person concerned may seek clarifications from the authorized officer of SAIL. In case of any tampering / unauthorized alteration is noticed in the submitted documents, from the tender document available on the SAIL website, the said tender shall be summarily rejected and the company shall have no liability whatsoever on the matter. However, deviation if any proposed by the tenderer may be separately indicated for acceptance. Such proposed deviation will not be treated as tampering for the purpose of application of the clause”.
2. **IMPORTANT NOTE: PLEASE NOTE THAT THE TENDERER MUST PROVIDE ONE VALID EMAIL ADDRESS AND MOBILE NO IN THEIR OFFER.**

(1) Submission of Offer:- Part II

- Techno Commercial Bid:- Bidders have to submit the Techno-Commercial Bid through Email (Email ID : burman.sumit@mjunction.in/rsmahawar66@sail.in/sumitburman942@gmail.com).
- Price bids to be submitted on MJUNCTION`s Platform at <https://buyjunction.in>.
- Methodology for submission of Online Price bid :-

Step 1: Login to [https:// buyjunction.in](https://buyjunction.in).

Step 2: Click on Login Tab

Step 3: Go to Important link and click on “View Live Auctions & Tenders”

Step 4: Click on Tender document.

Step 5: Existing users can login with their user id and password. New users would have to register for a user id & password on the site.

Step 6: Read through the “Bidding Procedure” to proceed further for bidding and place your online sealed price bid.

Step 7: Take a printout of the receipt confirming that the online sealed price bid has been submitted (Acknowledgement).

System generated acknowledgement-slip for online submission of price bid to be submitted along with the techno commercial bid.

MJUNCTION Contact person for assistance:-

Deblina Maity@8336991451 (Primary Contact of Kolkata)

Priyanka Majumdar@9051186491 (primary contact of Kolkata)

Abhishek Chakraborty @ 9163348279 (Burnpur branch)

Pradeep Mohapatra @ 7033297436 (Burnpur branch)

- The timeline for submission of offer is as under :-

Techno-commercial bid – To be submitted up to (client mail id)	25/04/2024 by 03.30 PM
Price Bid -To be submitted at M/s Mjunction`s Portal up to https://buyjunction.in	25/04/2024 by 03.30 PM
Due date of opening of Techno-commercial bid	25/04/2024 by 04.00 PM

INSTRUCTIONS TO TENDERERS

- 1) The Tenderers shall Sign and put their Seal on each page of the tender document, as token of acceptance of all the Terms & Conditions of the tender and submit the same.
- 2) The Tender Document is not transferable.
- 3) **The Tenderers shall submit the following Documents/Information along with Techno-Commercial Part (Part-I) of the Tender;**
 - i. GST Registration No. along with a Copy of the same.
 - ii. Permanent Account No. along with a Copy of the PAN Card
 - iii. Valid (Up to date) West Bengal Professional Tax Payment Certificate, if applicable otherwise declaration shall be given in letter head stating reason for non-applicability.
 - iv. PF, ESI, Registration numbers & copies of same. ECR in respect of PF.
 - v. Bank particulars (Name of the Bank, Branch, Type of Account and the Account No.) to which payment is desired.
 - vi. Copy of Labour License, under the Contract Labour (Regulation and Abolition) Act, 1970, held under previous Contract, if any.
 - vii. Type of Firm that is whether Proprietary Firm, Registered Partnership Firm, Private Limited Company, Public Limited Company, Co-operative Society etc. along with the following documents;
 - a. In case of Proprietary Firm, Affidavit of Sole Proprietary ship
 - b. In case of Partnership Firm, attested copy of Partnership deed along with amendment, if any and proof of Registration, if any.
 - c. In case of Limited Companies, Memorandum and Articles of association, Certificate of Incorporation, authorized, subscribed and paid up capital
 - d. In case of Cooperative Society, attested copy of the Certificate of Registration from the Registrar of Co-operative Societies.
 - viii. Declaration that the Site has been inspected and fully examined as per Annexure-II
 - ix. The Documents as per Clause-3 (Eligibility Criteria) of 'Special Conditions of Contract' of the Tender, as evidence to prove that the Tenderer fulfills the Eligibility Criteria.
- 4) Rates and quantities quoted in the tender shall be in figure and words. In case of any discrepancy between the two, the Rates quoted in words shall be taken as finally quoted Rates.
- 5) Conditional tenders either in Part-I or Part-II of the tender shall be liable for rejection.
- 6) By submitting the tender for the work, the Tenderer will be deemed to have satisfied himself that the Rates quoted by him in the tender will be adequate to complete such work. Any complaints in this regard on a later date shall not be entertained.
- 7) The Company reserves the right to accept/reject any or all tenders without assigning any reason thereof.
- 8) The Period of Contract, as mentioned in the Tender, can be extended or curtailed at the sole discretion of the Management.
- 9) ***The following three Declarations are to be given by the Tenderer as per the format given below and submitted along with the Techno-Commercial Bid. If these declarations are not enclosed with the Tender, it shall be liable for rejection.***

DECLARATION

I/we hereby declare that neither I am nor any of Partners/Directors of our Firm/Company is/are made prime accused in a prosecution before any Court of Law or involved in malpractice and/or theft of the property of SAIL.

The above declaration is true to my knowledge and belief and if any part or all found untrue, I/our Firm/Partnership/Company shall be liable for an action for banning of business dealings with SAIL, SGW, Kulti and/or our Tender/Contract shall be liable for cancellation.

Date:

Signature & Seal of the
Tenderer

(II) DECLARATION

I/we hereby declare that I/we (Proprietor or any Partner of the Firm or Director of the Company, as the case may be) have no relation with any employee working in SAIL Growth Works, Kulti/following relatives of mine are working at SAIL Growth Works, Kulti;

Sl.No.

Name of the Employees Relationship
Working at SGW, Kulti

Date:

Signature & Seal of the Tenderer

NOTE: Strike out which is not applicable

(III) DECLARATION

I/we hereby declare that within the meaning of Section-6 of the Company's Act, 1956, I have no relationship with any Director of SAIL/following Directors of SAIL are related to me;

Sl. No.Name of the Director of SAILRelationship

Date:

Signature & Seal of the Tenderer

NOTE: Strike out which is not applicable

(IV) DECLARATION

Anti-Bribery Undertaking:

By participating in this tender, the Suppliers/Vendors/Contractors are deemed to have undertaken that they shall not give or take any financial or non-financial bribe, to or from anyone during the tender or during the execution of the contract thereafter and if they notice any such Incident happening, they shall report it to SAIL Vigilance.

Date:

Signature & Seal of the Tenderer

IMPORTANT NOTES

- a. Acceptance for “time frame of submission of Clarifications/Documents” of all relevant documents required as per tender T&C within 10 days from the date of “First intimation by Contract Cell” after tender opening.
- b. If clarification is not submitted within 10 days from date of “First intimation by Contract Cell”, then SGW will evaluate the case as per last document submitted.
- c. After final evaluation and assessment of L-1 tender, Work Order will be placed directly.
- d. Security deposit shall be 3% of Work Order Value (exclusive of GST). 2% of the work order value has to be deposited before start of the job while 1% shall be recovered from the 1st running/ final bill whichever is earlier. **In case the Security Deposit is not furnished within the stipulated period (10 working days) from the date of issuance of Work Order, SGW Kulti will recover the same amount from the first Bill. Party has to deposit the S.D amount in SGW bank A/C. Bank Guarantee (B.G.) will not be accepted as S.D.**
- e. Validity of contract is meant to complete the work in progress items after the expiry of the period of contract.
- f. The tender can send the documents either through courier /speed post/by hand or may send scanned copies of all tender documents duly signed and stamped through mail, in the mail ID mentioned in the tender document. Hard copies of TD are to be sent to Contract Cell, SGW subsequently.
- g. If the contract fails to complete the work within the stipulated period. Contractor shall pay to the company as LD to 1% of value of work for every day's delay beyond stipulated period provided the entire amount of LD shall not exceed 10% of value of work. However no claim, whatsoever, against the Company will be entertained if the work is postponed to any later date or abandoned in the overall interest of the Company or for any other reason. Company's discretion in this matter shall be the final and binding on the Contractor.
- h. Banning of business dealings with the party will be dealt as per guideline for business dealings (effective from 01.01.2022) in case of any misconduct with SAIL Growth works – SAIL. Complete Guidelines attached.

ELIGIBILITY CRITERIA:

(A) The tenderer must have carried / carrying out job of machining of cast/forged/ fabricated engineering spares etc. in any Integrated Steel Plant/ PSU/Govt. Organization/ Public Limited Company/ Joint Venture with Govt. or Public Limited Company and to submit credentials of Single/multiple contracts of values given below in last seven years. Last day of the month previous to the one in which tenders are invited should be considered for completion of job of value as given below:-

a) Three annual work orders value each of minimum Rs 5,70,124.80/-

OR

b) Two annual work orders value each of minimum -Rs. 7,12,656/-/-

OR

c) Single annual work order value of minimum- Rs.11,40,249.60/-

(B)

Tenderer should have an average annual Turn Over of not less than Rs. 4,27,594/- in any three of last four years ending 31 st March 2023 and shall submit required documentary evidence like financial statements, balance sheets ,profit and Loss account with UDIN no. in support of the same.

(C)

Tenderer must have valid GST Registration and must quote his GST registration no. on his offer and must be agreeable for availing GST credit and pass on to SGW, Kulti.

Note:-

1. In support of eligibility and experience, the tenderer has to submit photo copies of workorder and completion certificate or job progress certificate for ongoing jobs duly notarized/certified by gazetted officer/self-attested copies to be accepted if work orders are of SGW Kulti.
2. For Work completion, if certificate has not been issued, Payment advice/ Paid RA bills should be submitted.
3. For mixed nature of jobs such as mechanical, civil, electrical etc. at least 50 % of the job should be relevant to the eligibility requirement consideration. In such cases total work order value will be considered for eligibility as this will confirm capability of the bidder to execute contracts of such volume and value.
4. In support of turnover, Audited Accounts along with all related schedules should be submitted. All financial documents such as Annual turnover, Balance sheet, Profit & Loss statement etc. certified by Chartered Accountant (CA) submitted by the tenderer / parties must contain Unique Document Identification Number (UDIN).
5. In case of completed work, if contract duration is more than one year, then the order value will be annualized for considering eligibility.
6. For running job contract of more than one year duration, if completed duration is more than one year then the annualized value of the completed work will be considered for eligibility.
7. If duration of contract/ completed work is less than one year then absolute value of contract/ completed work will be considered for eligibility.

SCOPE OF WORK:

(A) MACHINING INSTRUCTION FOR HAMMER:

- Hammer for coal crusher, Qty – 2016 nos. as per Drg. No. 001.027.00.057
- Machining, Balancing, Volume hardening to 300-350 BHN or Equivalent RC, normalizing in Casting.
- **MOST IMPORTANT:** Surface hardening of the top area 90 x 80 x 105 (indicated by star mark on the drawing) to Rc 50 (475 BHN) -60 (654 BHN) (up to a depth of 4 to 5 mm, painting and embossing.
- **Hammers to be tested by U/T test as per instruction mentioned in the drawing.**
- **Party to submit guarantee certificate and certificate from govt.** recognized test house for hardness and U/T .

SPECIAL POINTS:

1. **BALANCING OF THE HAMMERS IS THE MOST IMPORTANT PART OF DRAWING. SO EXTRA MACHINING MAY BE DONE FROM ANY SURFACE WHERE MACHINING SIGN IS NOT INDICATED TO BRING THE WEIGHT OF THE HAMMER AS PER DRAWING.**
 2. **MACHINING OF THE FLANGE R-90 , THICKNESS: 40 MM TO BE DONE IF THICKNESS OF FLANGE EXCEEDS 40 MM IN THE CASTING.**
 3. **DIFFERENCE IN WEIGHTS BETN THE HAMMERS NOT TO EXCEED 30 GRAMS**
 4. **ALL THE SHARP EDGES TO BE ROUNDED OFF**
 5. **THE 61 MM DIA HOLE MUST BE EXACTLY IN THE CENTRE**
 6. **THE HOLE DESIGNED FOR REMOVING THE SUPER FLUOUS WEIGHT SHOULD NOT EXCEED 41 MM DIA**
 7. **PAINTING AND EMBOSSING TO BE DONE ON CASTING.**
 8. **ALL THE POINTS MENTIONED IN THE DRAWING MUST BE ADHERED TO**
- (B) ORDER DISTRIBUTION: AMONG TWO PARTIES IN THE RATIO : 70: 30 AFTER TENDERING PROCESS THROUGH OPEN TENDER ENQUIRY (OTE)**
- (C) DELIVERY: TO BE SUPPLIED IN SETS . ONE SET = 36 NOS. (144 NOS= 4 SETS)**

- **DELIVERY SCHEDULE FOR 1st PARTY : FOR 1411 NOS**

- **1st MONTH: FREE**
- **2ND MONTH : 144 NOS**
- **3RD MONTH: 144 NOS**
- **4TH MONTH: 144 NOS**
- **5TH MONTH: 144 NOS**
- **6TH MONTH : 144 NOS.**
- **7TH MONTH : 144 NOS**
- **8TH MONTH: 144 NOS**
- **9TH MONTH: 144 NOS.**
- **10TH MONTH: 144 NOS**
- **11TH MONTH: 115 NOS**
- **Period of Contract: 11 Months.**

- **DELIVERY SCHEDULE FOR 2nd PARTY : FOR 605 NOS**

- **1st MONTH: FREE**
- **2ND MONTH : 144 NOS**
- **3RD MONTH: 144 NOS**
- **4TH MONTH: 144 NOS**
- **5TH MONTH: 144 NOS**
- **6TH MONTH: 29 NOS**
- **Period of Contract: 6 Months**

Note: In case all the castings (1411/605 nos.) are not sent to vendor's premises at a time , then Supply to SGW to start one month after receipt of castings by vendor @ 144 nos. per month and rest in Last Month.

NOTE:

3. In case L-2 doesn't match L-1 price, then order for complete quantity will be placed on L-1 party subject to:

(A) Fulfilling the eligibility criteria for full work order value as per the credentials submitted.

(B) Acceptance of following delivery schedule by L-1 party.

- 1ST MONTH: FREE
- 2ND MONTH : 288 NOS
- 3RD MONTH: 288 NOS
- 4TH MONTH: 288 NOS
- 5TH MONTH: 288 NOS
- 6TH MONTH : 173 NOS.
- 7TH MONTH : 144 NOS
- 8TH MONTH: 144 NOS
- 9TH MONTH: 144 NOS.

- 10TH MONTH: 144 NOS
 - 11TH MONTH: 115 NOS
4. In case L-1 party declines to accept the above delivery Schedule for the full quantity, then the retendering will be done for the 30 % quantity or more as per requirement of item.
 5. In case L-1 party backs out after successful tendering process, then banning of business dealings will be done as per guide lines of banning of business dealings.
 6. NOTE:
 - “IF PERFORMANCE OF ANY PARTY IN TERMS OF DELIVERY REQUIREMENT / QUALITY REQUIREMENT IS NOT SATISFACTORY THEN WE RESERVE THE RIGHT TO GET THE JOB DONE THROUGH OTHER PARTY AT THE RISK AND COST OF UNDER-PERFORMED PARTY”

SPECIAL TERMS AND CONDITIONS :

1. (**VERY IMPORTANT**) : The castings are to be machined as per drawing no./nos. mentioned above. **Also, the dimensions with close tolerances and critical dimensions are to be machined (even if no machining marks are given in the drawings). All the notes / instructions / points, technical requirements etc. given / mentioned in the drawings related to machining, critical dimensions etc. to be followed strictly. The templates are to be used for checking/ machining wherever mentioned in the drawing.** The tenderer is advised to visit the BOKARO Steel Plant, to see the use / application / fitting / assembly requirement of the above mentioned items before quoting. Once the tenderer submits his quotation, it will be presumed that he has understood the job thoroughly.
 2. The vendor may physically inspect the castings at SAIL Growth Works (SGW), Kulti, Dist – Burdwan, Pin- 713343 (West Bengal) and **arrangement of dispatch of the castings to the vendor’s works shall be done by SGW, Kulti.** The cost of packing, forwarding, transportation, insurance etc. of the castings from SGW, Kulti to the vendor’s works shall be borne by SGW, Kulti.
 3. The castings will be supplied in properly annealed condition and in general, 10-15 mm (approx.) machining allowances on tool point will be provided (where machining mark / close tolerance is shown in the drawing or in case of critical dimensions).
 4. Arrangement of inspection by Bokaro Steel Plant / SGW, Kulti shall be done through us. The vendor has to
 5. provide all kinds of instruments, template etc. required for inspection. Contractor’s own inspection report including dimension charts to be prepared before offering for final inspection
 6. If any minor casting defect/s is/are revealed during / after machining, the same is/are to be repaired as per procedure for repair of castings as per relevant Indian Standard. In case, any casting is found beyond economic repair / rectification after joint inspection with SGW, Kulti’s representative and declared rejected, then commercial settlement for the same shall be done on mutually agreed terms.
7. **The offer of the contractor is on ‘scrap retained’ basis.**

GENERAL TERMS & CONDITIONS :

1. Payment terms: 100% payment within 30 days from acceptance of materials by the consignee/ date of issue of I.C. whichever is later.
2. Guarantee: Materials are to be guaranteed for free replacement / rectification of defects arising out of faulty workmanship (machining) for 12 months from acceptance or 18 months from dispatch whichever is earlier.
3. **Delivery terms: FOR (SGW STORES) KULTI basis. Freight, insurance, charges towards dispatch of materials from SGW, Kulti to vendor’s works shall be arranged by SGW, Kulti at SGWs Cost**
4. **The cost of transportation of Finished items from vendor’s premises to (SGW KULTI STORES), is to be arranged and borne by the vendor inclusive of insurance charges etc.**
5. Packing & forwarding: Offer price shall be inclusive of packing and forwarding charges while dispatching to SGW, Kulti.
6. **GST: GST extra as applicable. Documentation shall be done as per GST rule and GST points as per Annexure-G**

7. Inspection: Pre-dispatch inspection will be carried out at your premises by us/ BSL, You have to provide all the facilities.
8. Necessary statutory deductions like IT etc. will be made at source and necessary certificates will be provided.
9. Apart from Security Deposit, you have to also provided indemnity which will be communicated after placement of order for safe custody against theft, damage etc.
10. Necessary statutory deductions like IT etc. will be made at source and necessary certificates will be provided.
11. MATERIALS& EQUIPMENTS: As per 'Scope of Work'
12. COMPLETION TIME: Work Order shall be issued after finalization of the tender. Casting shall be dispatched to vendor's works after receipt of Indemnity bond/BG of Full materials value of work order . The Vendor shall start work immediately after receipt of the castings from SGW, Kulti. The delivery schedule is mentioned above under special terms and conditions. The work shall be performed with due diligence and shall be completed in all respects within the contract / delivery period as stipulated above.
13. **ESCALATION:** The Rates quoted by the tenderer shall remain firm during the entire tenure.
14. of the Contract. No Escalation in Rates on any ground, what so ever, will be entertained.
15. he Tenderer shall be required to carry out the entire work with his own resources.
16. **EVALUATION OF L-1 TENDERER:** Lowest (L-1) tender shall be decided on the basis of total price. The quantity shall be distributed amongst two parties in the ratio of 70:30 subject to matching L-1 price.
17. For normal adequate number of offers received, price will be obtained through On-Line Reverse Auction on the platform of m-junction services limited.
18. **SAFETY: All Safety precautions on the jobs are to be taken by the Contractor.**
19. **TAXES & DUTIES, STATUTORY OBLIGATIONS AND RATE:**
The Rates quoted by the tenderer should be inclusive of all applicable taxes, duties, levies, Cess and all other statutory obligations/expenses, but excluding GST and shall be firm during the entire period of Contract.
Return required to be filed at your end under the GST Law and should be filed within the statutory time limit so that SGW, Kulti, can timely avail the GST Credit. GST NO. OF KULTI : 19AAACS7062F6Z6.

20. SECURITY DEPOSIT (SD):

The successful Tenderer shall deposit an amount equivalent to 3% of the total Work value (exclusive of GST) towards Security Deposit. 2% of the work order value has to be deposited before start of the job while 1% shall be recovered from the 1st running/ final bill whichever is earlier. The Security Deposit less the Earnest Money already deposited (if Any) is to be furnished by the successful tenderer in the form of digital mode/NEFT from any Scheduled Bank except Co-operative and Gramin Bank, in favour of "SAIL Growth Works, Kulti", payable at 'State Bank of India, Kulti', within ten (10) days from the date of issue of Work Order. The Security Deposit shall bear no interest and refund will be made as per provision. **In case the Security Deposit is not furnished within the stipulated period (10 working days) from the date of issuance of Work Order, SGW Kulti will recover the same amount from the first Bill. Party has to deposit the S.D amount in SGW bank A/C. Bank Guarantee (B.G.) will not be accepted as S.D.**

21. REFUND OF SECURITY DEPOSIT:

The refund of Security Deposit shall be made to the Contractor within 30 days from the date of successful completion of Contract Period and on submission of "No Dues Certificate" by the Contractor obtained from the Executing and the Operating Authorities as well as satisfactory compliance of statutory provisions, after deduction of any dues from the Contractor arising out of any claim by SGW, Kulti on the Contractor.

22. SECURITY FOR SAFE CUSTODY OF MATERIALS :

- (a) **FULL MATERIAL VALUE in form of : BG/I.B**

- Indemnity bond (I.B) for local MSME vendors including Asansol- Durgapur – Howrah and any other place near by in W.B. State)
- BG for Out side State and Outstation Vendors.

(b) FULL MATERIAL VALUE = Rs 7357/ PER CASTING OF HAMMER

- **FOR 1st PARTY : 1411 NOS: Rs 1,03,80,727/-**
- **FOR 2nd PARTY: 605 NOS: Rs 44,50,985/-**

NOTE:

- Materials will be sent to party only after submission of BG/IB (OF FULL MATERIAL VALUE)**
- Format of Indemnity bond will be given by SGW**
- Bank Guarantee should be issued from scheduled banks except Cooperative Gramin Banks.**

22. REFUND OF BANK GUARANTEE AND INDEMNITY BOND

The B.G & Indemnity bond shall be returned after successful completion of the job. If at any time during the course of work, the quality or progress of work has been found to be not satisfactory, the Contract shall be terminated and BG/I.B will be forfeited and the job will be got done by some other Agency at the risk, cost & responsibility of the original Contractor.

23. LIQUIDATED DAMAGES FOR DELAY IN COMPLETION:
AS PER STANDARD BID DOCUMENT (SBD)

24. RISK & COST:

In case of failure on part of the Contractor to complete the entire job within the scheduled completion period as per specification and satisfaction of the Executing & Operating Authorities, the Company will be at liberty to get the unexecuted quantities of the job done through any other agency at the risk & cost of the original Contractor. The price differential in case of higher cost to SAIL, if any, shall have to be borne by the defaulting Contractor. Moreover the defaulting Contractor shall have no claim over the quantity, which they failed to execute.

25. PERFORMANCE GUARANTEE BOND:

If a tenderer quotes unworkable Rates, i.e. if the quoted rate is abnormally low, such that it raises material concerns as to the capability of the Bidder to perform the Contract at the offered rate, the Party will be asked to justify the rate quoted. After evaluating the justification provided, if it is felt that the bidder has failed to substantially demonstrate its capability to deliver the contract at the offered rate, the bid/quote may be rejected.

However under compelling circumstances, where the bidder is considered for placement of order despite having quoted abnormally low rates, the Bidder may be required to give Performance Guarantee Bond (PGB) (in addition to the Security Deposit, if applicable) in the form of Bank Draft/Bank Guarantee. The amount of PGB to be decided by SAIL/Plant at the time of placement of order which will be the amount less than lower limit -20% of the Estimate.

In case the Tenderer refuses to give PGB, the following action may be taken against them

- If they have submitted Earnest Deposit – their EMD will be forfeited and they will not be considered in re-tendering if order/contract is not finalized from the present tender.
- If they have submitted Bid Securing Declaration – action may be taken against them as stipulated in the Bid Securing Declaration.

26. GENERAL CONDITIONS OF CONTRACT:

The Contract shall also be governed by 'General Conditions of Contract'. A copy of 'General Conditions of Contract' is available at the Contract Cell of SGW, Kulti. The tenderers are free to go through the same on any working day during schedule working hours.

27. PAYMENT TERMS:

- The Bills shall be raised on completion of the work as per delivery schedule and submitted in triplicate, duly certified by the Executing and the Operating Authorities. Subject to any deductions that may have to be made as per the Terms of the Contract and provided the Bills are supported with all required documents as per the Tender, they shall be cleared for Payment.

- On verification of the Bills by the Executing and the Operating Authorities for actual quantities executed and subject to any deductions that may have to be made as per the terms of the Contract, the Bills will be cleared for payment and the payment will be made by SGW, Kulti through account payee Cheques within 30 (thirty) days of submission of clear Bills.
- Income Tax shall be deducted from the Bills of the Contractor as per Income Tax Act, 1961. The Certificate for Tax Deducted at Source (TDS Certificate) shall be provided to the Contractor at the end of the financial year.

28. **CONTRACT DOCUMENT:**

The several documents forming the Contract are to be taken as mutually explanatory to one another. Should any condition in 'General Conditions of Contract (GCC) / SAIL P-1' be contrary to 'Special Conditions of Contract (SCC)', then 'Special Conditions of Contract' shall prevail.

29. SGW, KULTI's decision regarding acceptance in whole or part or summary rejection of tenders submitted without assigning any reason shall be final and binding.

30. **ARBITRATION:**

In the event of any dispute or differences arising under or out of the Contract, the same shall be referred to the Sole Arbitrator or any person nominated by the Executive Director, SAIL, SGW, KULTI. The award of such Arbitrator shall be final and binding on the Parties to this Agreement.

31. **Termination of contract:-**

- a. Be it noted that any unlawful action, which is against the Safety and Security of the Plant and Equipment and endangers human life, may lead to summary termination of the Contract, before the completion of the Contract tenure and during the operation of tenure of the Contract.
- b. If the work and progress of the awarded work is not carried out as per the terms of agreement and successful Tenderer fails to give any satisfactory explanation for poor performance of work and supervision, which is on account of successful Tenderer's non-compliance of the working instruction, the Executing Department may recommend to the Management for imposing penalty and on repetitive recurrence more than 5 times. The management may hold successful Tenderer responsible and form a ground for revocation of the Contract as well

32. **JURISDICTION:**

The Asansol Court shall have the exclusive jurisdiction upon any matter arising out of this Contract.

33. **RA Strategy/Price Discovery:**

- a. SAIL reserves the right to discover the L-1 bidder/tenderer amongst the techno-commercially qualified bidders/tenderers by opening the sealed price bids, pre-submitted by such bidders along with the techno-commercial bids on or before TOD or by conducting RA.
- b. SAIL reserves the right to use any RA strategy to be intimated to techno-commercially acceptable bidders before RA event. **SAIL also reserves the right to eliminate one or more of the high price bidders/tenderers before the RA event by ranking the bidders/tenderers based on their sealed price bids, pre-submitted online by such bidders/tenderers along with the techno-commercial bids on or before TOD. Such eliminated bidder(s) / tenderer(s) will not be eligible to participate in RA process. The number of such high price bidders/tenderers (H1, H2...Hn) to be eliminated, if any, will be decided by SAIL Plant/Unit before conducting RA.**
- c. However the Highest quoting bidder(s) is not to be eliminated in the following scenarios:
 - (a) H-1, H-2,Hn bidder (s) are eligible MSEs and their price (s) are coming within price band, fixed as per MSME Policy of Government of India, of the lowest online sealed bid price received on or before TOD.
 - (b) H-1, H-2,Hn Bidder (s) are eligible M11 bidders and their price (s) are coming within price band, fixed as per M11 Policy of Government of India as applicable, of the lowest online sealed bid price received on or before TOD
- d. In case, no bid is received during Reverse Auction, then the lowest price (L-1 Price) received along with the techno-commercial bids on or before TOD shall be binding on the bidder(s)/tenderer(s) and the case may be processed on the basis of the L-1 price and the relative ranking of the bidders/tenderers therein.
- e. Bidder(s)/Tenderer(s) shall be required to submit detailed price break-up, as per RFQ within the stipulated time. Non-submission of detailed price break-up within the stipulated time, wherever required, by the L-1 bidder/Matched L-1 bidder, post RA, will be treated as backing out of the bidder and invite penal action as per the extant guidelines of SAIL.

Schedule of Rates

Item sl no.	Item description	Qty(nos.)	Cost for Machining, balancing, heat treatment and ultrasonic testing ,painting & embossing (Rs)- as per scope of work (Rs/each)	Transportatio n cost from the vendor's works to SGW-Kulti (including freight. insurance, octroi, GST on transportatio n etc.) (Rs each)	Total price (Rs/each)	Grand Total Cost for 2016 nos. (Rs) D= (C) X 2016
			(A)	(B)	$\frac{(C)}{(A+B)}$	
1.	Hammers for coal crusher Drg no: 001.027.00.057	2016				

Total price: Rs.....

1. QUOTE FOR TOTAL QTY 2016 NOS IN BUY JUNCTION BID
2. THE SCRAP TO BE RETAINED BY THE PARTY. SO THE OFFER SHOULD BE SUBMITTED ON SCRAP RETAINED BASIS BY PARTY.
3. THE COST OF TRANSPORTATION OF BLACK CASTINGS FROM SGW KULTI TO VENDOR'S PREMISES SHALL BE BORNE BY SGW
4. THE COST OF TRANSPORTATION OF FINISHED CASTINGS FROM VENDOR'S PREMISES TO SGW KULTI SHALL BE BORNE BY VENDOR.
5. GST APPLICABLE AS PER NORMS
6. PRICE BREAK UP TO BE SUBMITTED BY PARTY AFTER RA

Bid-Securing Declaration
(In lieu of EMD)

Date:
Bid No.:
Alternative No.:

To
SAIL GROWTH Works Kulti

I/We-----, the undersigned, declare that:
I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if

I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance Security before the deadline defined in the request for bids document, I/We will be suspended for the period of one year from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Yours faithfully

[insert signature of person whose name and capacity are shown] In the capacity of

[insert legal capacity of person signing the Bid Securing Declaration]

Name: *[insert complete name of person signing the Bid Securing Declaration]*

Duly authorized to sign the bid for and on behalf of: *[insert complete name of Bidder]*

Dated on _____ day of _____, _____ *[insert date of signing]*

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]

Bid-Securing Declaration
(In lieu of EMD)

Date:
Bid No.:
Alternative No.:

To
SAIL GROWTH Works Kulti

I/We-----, the undersigned, declare that:
I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if

I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance Security before the deadline defined in the request for bids document, I/We will be suspended for the period of one year from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Yours faithfully

[insert signature of person whose name and capacity are shown] In the capacity of

[insert legal capacity of person signing the Bid Securing Declaration]

Name: *[insert complete name of person signing the Bid Securing Declaration]*

Duly authorized to sign the bid for and on behalf of: *[insert complete name of Bidder]*

Dated on _____ day of _____, _____ *[insert date of signing]*

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]

Annexure-II

(To be submitted by the Tenderer on his Letter Head)

DECLARATION ON SITE INSPECTION

This is to state that we have visited the Site of work and the same has been inspected and fully examined by us. This is to confirm that the Rates in the Tender have been quoted by us after considering all aspects.

Signature of the Tenderer with Seal

GENERAL CONDITIONS OF CONTRACT (GCC)

- 1.0 **DEFINITIONS:**
In the Contract (as hereinafter defined) the following words, definitions and expressions shall have the meanings hereby assigned to them, except where the context otherwise requires.
- 1.1 **"Approved"** means approved in writing, including subsequent written confirmation of previous verbal approvals, and "approval" means approval in writing including as aforesaid.
- 1.2 **Company** means Steel Authority of India Ltd. having its Registered Office at "IspatBhawan", Lodi Road, New Delhi –110 003
- 1.3 **Competent Authority** means Head of the Deptt. of the Employer and any other Executive empowered under its Delegation of Powers and also includes its nominee.
- 1.4 **Contract** means the Invitation to Tender, Instruction to Tenderers, General Conditions of Contract, Special Conditions of Contract, Drawing Specifications, Scope of Work showing approximate quantities, Tender submitted by the Tenderer, including his Price offer, Performance Guarantee Bond and Other Bonds, Letter of Intent, Work Order and any communication having the effect of amendment of the Contract.
- 1.5 **Contract Price** means the sum named in the tender that has been accepted, subject to such addition thereto or deduction there from as may be made under the provision of the Contract.
- 1.6 **Contractor** means "the tenderer" who's Tender has been accepted and includes the Contractor's authorized representative, successors or permitted assigns, legal heirs.
- 1.7 **Director** means and includes the Director (Technical), SAIL, New Delhi. and includes the Executive Director (GD &Kulti)/General Manager (SGW), who is exercising the power of the Director in respect of award of Contract, or the Director's designated representative, or other empowered Contract awarding authority. The Director shall make all determination of the Employer/Company with respect to the Contract, except those specifically reserved to the Engineer.
- 1.8 **Duration of Contract** means the period stipulated in the Contract or Work Order and includes any extended period thereof, if any made by written communication.
- 1.9 **Employer** means the "SAIL Growth Works, Kulti" of Steel Authority of India Ltd., a Company registered under the Indian Company's Act, 1956 and includes its legal successors and assigns. Wherever in the Contract, instructions/directions are to be issued by the 'Employer', the Chief Executive of SAIL Growth Works, Kulti or his duly authorized representative shall issue such instructions/directions.
- 1.10 **Engineer** means Head of the Executing Department or any other person appointed from time to time by the Employer and notified in writing to the Contractor to act as Engineer for the purpose of the Contract. Where work must be "Approved" or be performed "As Directed", or "As required" (or words of like import), the approval, direction or requirement will be made by the Engineer.
- 1.11 **Engineer's Representative** mean any assistant of the Engineer appointed from time to time by the Engineer to perform the duties set forth in Clause-2 hereof whose authority shall be notified in writing to the Contractor by the Engineer.
- 1.12 **Equipment** means all tools, instruments, appliances or things of whatsoever nature required in course of execution, of the work or temporary work.
- 1.13 **Notice in writing** or written Notice means a Notice in written, typed or printed characters sent (unless delivered personally or otherwise provided to have been received) by Registered Post/Courier (with POD) to the notified address, or the Registered Office of the addressee, or the Contractor's Site Office, and shall be deemed to be sufficient service, if so sent or left at that address.
- 1.14 **Terms & Conditions** means the 'Special Conditions of Contract' and the 'General Conditions of Contract' herein mentioned and other stipulations incorporated in any part of Tender Documents.
- 1.15 **Tender** means Offer against Enquiry/Advertisement/Downloaded from SAIL Website submitted by Tenderer.
- 1.16 **Tenderer** means and includes the person or firm or Company who have submitted valid tender and also includes its authorized representatives, heirs, executors, administrators, successors and assignees as approved by the employer.
- 1.17 **Work** means all work as given in the 'Scope of Work' in the Tender Document and includes any associated work required for fulfillment of the Scope of Work and as set forth and required by the Specifications, Drawings & Schedules hereto Annexed, and also such additional instructions and drawings as shall from time to time during the progress of work be supplied by the Employer.
- 1.18 Words imparting the singular only shall include the plural and vice-versa. Where the context require, Words imparting person only shall include firms and Corporations, and vice-versa.
- 2.0 **DUTIES OF ENGINEER'S REPRESENTATIVE:**
- 2.1 The duties of Engineer's Representative are to watch and supervise the work. He shall have no authority to relieve the Contractor of any of his duties or obligations under the Contract except as expressly provided hereunder or elsewhere under the Contract, nor except as expressly provided there under or elsewhere in the Contract, to order any work involving delay or any extra payment by the Company nor to take any variation of or in the works.
- 2.2 The Engineer may from time to time in writing delegate to the Engineer's Representative any of the powers and authorities vested in the Engineer and shall furnish to the Contractor a copy of all such written delegation of power or authorities. Any written

instruction or written approval given by Engineer's Representative to the Contractor within the terms of such delegation (but not otherwise) shall bind the Contractor and the Employer provided however;

- a) Failure of the Engineer's Representative to disapprove any work or materials shall not prejudice the powers of the Engineer thereafter to disapprove such work or materials.
- b) If the Contractor is dissatisfied by any decision of the Engineer's Representative he may refer the matter to the Engineer who shall thereupon confirm, reverse or vary such decision and the same shall be final and binding on the Contractor.

3.0. **ASSIGNMENT/SUB-CONTRACTING:**

3.1. The Contractor shall not assign the Contract or any other part thereof or any benefit or interest therein or there under, without the prior written consent of the Employer.

3.2. The Contractor shall not Sub-Contract the works, except where otherwise provided by the Contract, without the written consent of the Employer and such consent, if given shall not absolve the Contractor from any responsibility, liability or obligation under the Contract and he shall be responsible for the acts, defaults or neglects of any Sub-Contractor, his agents, servants or workman as fully as if they were the acts, defaults or neglects of the Contractor, his agents, servants or workmen. Provided always that the provision of labour on a piecework basis shall not be deemed to be subletting under this Clause.

4.0 **CONTRACT DOCUMENTS:-**

4.1 **Documents mutually explanatory:**

The several documents forming the Contract are to be taken as mutually explanatory of one another, and interpreted harmoniously, and in case of ambiguities or discrepancies, the same shall be clarified by the Employer who shall thereupon issue to the Contractor instructions/directions indicating the manner in which the work is to be carried out. However, if there is any conflict regarding any term or expression or instruction used in more than one document, the term or expression or instruction in the later document as arranged seriatim in Article: 1.1.4 shall take precedence and have overriding effect, and modify or replace any such term or expression occurring in an earlier document.

4.2 **Further Instructions:** The Engineer shall have full power and authority as delegated to him by the Employer, to issue to the Contractor, from time to time during the progress of the work, such further instructions as shall be necessary for the purpose of the proper and adequate execution of the work and the Contractor (s) shall carry out and be bound by such further instructions.

5.0 **GENERAL OBLIGATIONS OF CONTRACTOR:**

5.1 **Contract Agreement:**

The Contractor shall enter into and execute a Contract Agreement, if required as per the Contract, in the form as prescribed by the Employer within the time specified in the Letter of Intent and in default thereof the payment to be made to the Contractor under the Contract shall not be made till the Agreement is signed. The cost of the Stamp duty for the Agreement is to be borne and paid by the successful tenderer.

5.2 **Site Conditions and Requirement of Work:** By making of Offer/Submitting the tender, it will be deemed that the Tenderer/Contractor had studied the Tender papers carefully. It will be presumed that the Drawings for the work, that were available in the office of the Engineer, have been inspected. It will also be presumed that the Contractor had inspected the Site of the work to acquaint himself with the Site and local conditions, means of access to the Site of work, nature of work and all other matters pertaining thereto. The Contractor has thus made himself aware of the conditions and the requirements under the Contract, and the facts on the ground, before consenting to the Contract. The Company therefore, will not accept any subsequent claim of misunderstanding or misrepresentation of essential information/fact relating to the Work or Contract.

5.3.1 **Sufficiency of tender:**

The Contractor shall be deemed to have satisfied himself before submitting tender as to the correctness and sufficiency of his tender for the work and of the rates stated in the Tender Schedule which shall cover all his obligations, under the Contract and all matters and things necessary for the proper completion and maintenance of the work.

5.4 **Employment of Labour:**

Employment of labour and fixing of their wages and other benefits will be done by the Contractor as per the provisions of the Contract Labour (R&A) Act 1970 and Rules framed there under. The Contractor shall also comply with all Act and rules framed there under by the appropriate Government from time to time including those governing the protection of health, sanitary arrangements, wages, welfare and safety of Contract labour employed. The rules and other statutory obligations with regard to fair wages and all terminal benefits, welfare & safety measures, Maternity leave and Maintenance of necessary registers etc. will be deemed to be part of the Contract and shall be the sole responsibility of the Contractor.

The Contractor will get himself registered with concerned statutory authority as provided in the Act and shall be directly responsible to the authorities there under for compliance with the provisions there under. The Contractor shall keep engaged such number of labors as shall be necessary for the timely execution of the job. The Contractor shall not increase the number of workers without prior permission of the Employer. The retrenchment compensation and other benefits will be payable by the Contractor to their labour as per the provisions of the Industrial Disputes Act. The Contractor shall strictly comply with the statutory rules and regulations in respect of working hours of female labourer at Site and other benefits available to such female labourers.

5.5 **Work to the satisfaction of Engineer:**

The Contractor shall execute the work efficiently and complete it all respects in strict accordance with the Contract terms and conditions and shall comply with and adhere strictly to Engineer's Instructions and Directions on any matter in accordance to the terms of the Contract. The Contractor shall take instructions and directions only from the Engineer or from Engineer's Representative.

5.6 **Contractor's Superintendence:**

As soon as practicable, after the acceptance of his tender, the Contractor shall if required submit to the Engineer for his approval a program showing the order of procedure and method in which he proposes to carry out the work and shall whenever required by the Engineer furnish for his information particulars in writing of the Contractor's arrangements for carrying out the work and of the equipments which the Contractor intends to use for the Contract. The submission to and approval by the Engineer or its authorized

representative of such program or the furnishing of such particulars shall not absolve the Contractor or any of his duties or responsibilities under the Contract.

The Contractor shall provide all necessary superintendence during the execution of the work and as long thereafter as Engineer may consider necessary for carrying out the Contract. The Contractor or his competent and authorized representative as approved by the Employer in writing, which approval may, at any time, be withdrawn, shall engage himself continuously on the work and shall make available whole of his time for the superintendence of this Contract work. If such approval is withdrawn by the Employer, the Contractor shall, as soon as, is practicable, having regard to the requirement of replacing him as hereinafter mentioned, after receiving written Notice of such withdrawal, remove his representative from the Site and shall not thereafter employ/engage him again on the Site in any capacity and shall replace him by another representative approved by the Employer. Such authorized representative shall receive on behalf of the Contractor instruction and direction from the Engineer or from the Engineer's representatives subject to Clause-2.0.

If, in the opinion of the Engineer due progress is not made with work in accordance with the Contract and/or any directions given by the Engineer are not properly complied with or attend to, the Engineer may, if he considers it necessary or proper for the due execution of work in accordance with the Contract, of which his Certificate in writing will be sufficient evidence, order the employment of extra supervising staff to supervise the work, and expenses of such employment including the salary of the supervising staff shall be provided by the Contractor, provided that the Engineer shall give to the Contractor not less than 7 days previous Notice in writing of his intention to exercise this power.

5.7 **Contractor's Employees:**

The Contractor shall provide and employ at the Site in connection with the execution of the contracted work, Contractor's employees comprising:

- a) Only such technical assistants and other staff as are skilled and experienced in their respective callings and foreman competent to provide proper supervision to the works.
- b) Such skilled, semi-skilled and unskilled laborer as is necessary for the proper and timely execution of this contracted works. Multi skilling of labour will be permitted, provided the same is to the satisfaction of the Engineer, who in turn will not only examine the skill, but also observe whether the safety norms are being observed by the labour undertaking Multi skill work.

The Engineer shall be at liberty to object to and require the Contractor to remove forthwith from the work any person employed by the Contractor for or in connection with the execution of the work who, in the opinion of the Engineer, has misconduct himself or is incompetent or negligent in the proper performance of his duties or whose employment is otherwise considered by the Engineer to be undesirable and such person shall not be again employed for the work without the written permission of the Engineer. Any person so removed from the work shall be replaced without delay by competent substitute approved by the Engineer.

The Contractor shall submit to the Engineer or the Engineer's representative returns in such forms and at such intervals as the Engineer may prescribe from time to time showing in details the supervisory staff, his permanent employees deployed at Site and the numbers of the several classes of labour engaged by the Contractor at Site and such other information as may be deemed necessary for the purpose of ensuring that the provisions of the Contract, in so far as Contractor's employees are concerned, are being duly complied with by the Contractor.

The Contractor shall not employ labourers below the age as specified in the Factory Act/Industry/Factory Regulation and also shall employ laborers who are medically fit persons.

5.8 **Damage to person or property:**

The Contractor shall except if and so far as the Contract otherwise provides, indemnify and keep indemnified the Employer against all losses and claims for injuries or damage to any person or property whatsoever which may arise out of and in the course of execution of this contracted work, as a consequence thereof and against all claims, demand, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

From commencement of the work to its completion the Contractor shall take full responsibility and care of the work including all temporary works and in case any damage, losses or injury shall happen to the works or to any part thereof or to any temporary works from any cause whatsoever, shall at his own cost repair and make good the same so that at the completion the work shall be in good order and conditions and in conformity in every respect with the requirement of the Contract and the Engineer's instructions.

Before the commencement of the contracted work, the Contractor shall, but without limiting his obligations and responsibility under Clause 5.9 here of, insure against any damages loss or injury which may occur to any property, including that of Employer or to any person including any person/employee of the Employer by or arising out of the execution of contracted work or in carrying out the Contract otherwise than due to 'excepted risks'.

Note: The 'excepted risk' mentioned above are war hostilities (whether war be declared or not), act of foreign enemies, rebellion, revolution, insurrection, or military or usurped, civil war or riot, commotion or disorder (otherwise than among Contractors or Employees) riot, commotion or disorder, or any such operation of the forces of nature or responsible foresight and ability on the part of the Contractor could not foresee or reasonably provide against.

5.9 **Accident or Injury to Workmen:**

The Employer shall not be liable for or in respect of any damages or compensation payable as per law in respect of and in consequences of any accident or injury to any workmen or any other person in the employment of the Contractor save and except for accident or injury resulting from any act or default of the Employer, his representative or servant. The Contractor shall indemnify and keep indemnified the Employer against all such damages and compensation (save & except as aforesaid) as against all claims, demands, proceedings, costs, charges and expenses whatsoever in respect or in relation thereto.

5.10 **Workmen Compensation:**

The Contractor shall at all times indemnify the Employer against all claims for Compensation under the provision of the Workmen's Compensation Act, 1923 (VIII of 1923) or any other law from the time being in force, or in respect of any workmen employed by the Contractor in carrying out the Contract and against all costs and expenses for penalties incurred by the Employer in connection therewith and (without prejudice to any other means of recovery) the Employer shall be entitled, to deduct from any money due or to become due to the Contractor (whether under this Contract or any other Contract) all money paid or payable by way of compensation aforesaid or for costs or expenses in connection with any claims thereto and the Contractor abide by the decision of the Employer as to the sum payable by Contractor under the provisions of this Clause.

5.11 **Notice & Payments of fees:**

The Contractor shall give all Notices and pay all fees required to be given or paid under any Central or State Statute, ordinance or other law or any regulation or by-law of any local or otherwise duly constituted authority in relation to the execution of this contracted work and by the Rules & Regulation of all Public bodies whose property or rights are affected or may be affected in any way by the contracted work.

5.12 **Fossils:**

All fossils, coins, articles of value or antiquity and structures and other remains or things of geological or archaeological interest discovered on Site shall be, as between the Employer and the Contractor, be deemed to be the absolute property of the Employer and the Contractor shall take reasonable precaution to prevent his workmen or any other persons from removing or damaging any such articles or thing and shall, immediately upon discovery thereof deposit the same with the Employer, at the place designated by the Engineer.

5.13 **Patent Right & Royalties:**

The Contractor shall be liable and responsible for any claim made against the Company for any infringement of patents through the use or application of patented tools, articles, appliances, structures, materials, devices, applications, methods, ways, processes or any other use of such patent in the performance of the work or by the use of any process or method connected with the work or by the use of any materials used upon the Work, except to the extent that a claim result from the Contractor's use of a material or product specially required by the Company in the Specifications. The Contractor shall save harmless and indemnify the Company from and against all costs, expenses and damages (including reasonable legal expenses), which any of them shall incur or be obligated to pay, by reason of any such infringement or claim of infringement, and shall, at the election of the Company, defend at the Contractor's sole expense, all such claims in connection with any alleged infringement.

5.14 **Interference with Traffic & Adjoining Properties:**

All operations necessary for the execution of this contracted work shall so far as in compliance with the requirements of the Contract permits, be carried out so as not to interfere unnecessarily or improperly with the public or private convenience or the access to use and occupation of public or private roads and foot-paths or to the properties whether in the possession of the Employer or any other person and the Contractor shall save harmless and indemnify the Employer in respect of all claims, damages proceedings, damages, cost, charges and expenses whatsoever arising out of or in relation to any such matter.

5.15 **Facilities for other Contractors:**

The Contractor shall in accordance with the requirement of the Engineer afford all reasonable facilities to any other Contractors employed by the Employer and their workmen and for the workmen of the Employer and of any other properly authorized authorities or statutory bodies who may be employed in the execution on or near the Site of any work not included in the Contract Scope or any Contract which the Employer may enter in to in connection with or ancillary to this contracted work.

5.16 **Clearance of Site on Completion:**

On completion of the Period of Contract, all materials rubbish and temporary structures of any sort or kind used for the purpose of or connected with contracted work including quarters for Contractor's labourers are to be removed by the Contractor and Site handed over in a tidy and workmanlike condition. No final payment in settlement of the accounts for the work shall be held to be due or shall be made to the Contractor till such Site Clearance shall have been effected by him. In the event of the Contractor failing to comply with this provision within 7 days after receiving Notice in writing from the Engineer to that effect, such clearance may be made by the Engineer at the expenses of the Contractor without any further correspondence. The Employer shall under no circumstances be held liable for any loss or damage to such Contractor's property as may be on Site due to removal there from, which removal may be effected by means of public sale of such materials and property or in such way as deemed fit and most convenient to the Engineer. Employer shall not be liable to make any payment in this respect.

5.17 **Force Majeure:**

If, at any time, during the execution of this Contract, the performance in whole or in part, by either party, of any obligation under this Contract, shall be prevented or delayed by reasons of war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemic, quarantine restrictions Acts of State or other Acts of God, hereinafter referred to as eventualities, then, provided Notice of the happenings of any such eventualities is given by either party to the other, within 15 days from the date of occurrence thereof, neither party shall by reason of such eventuality be entitled to terminate this Contract, nor shall either party have any claim for damages against the other, in respect of such non-performance or delay in performance, and work under this Contract shall be resumed as soon as practicable after such eventuality has come to an end or ceased to exist and the decision of the Employer as to whether the work have to be so resumed shall be final and conclusive.

Should one or both parties be prevented from fulfilling their contractual obligations by a state of Force-majeure lasting continuously for a period of at least three months, the two parties should consult each other regarding the further implementation of the Contract, provided always, that if no mutually satisfactory arrangement is arrived at, within a period of a month from the expiry of three months referred to above, the Contract shall be deemed to have expired at the end of the said 4th month referred to above, in which event the liability under the Contract shall be settled taking into consideration the work carried out by the Contractor up to that expiry date without prejudice to the rights of Employer arising prior to that expiry date.

If there are any Judicial Pronouncement/Statutory Notifications/Orders, the Employer reserves to himself the right to withdraw partly or fully any item/items of work as required for compliance of such orders without any financial claim on this account by the other party.

- 5.18 **Foreclosure of Contract:** The Employer shall have the right to foreclose the Contract, for whatever reasons, by giving three (03) months' Notice on the Contractor without any claim of damages by the Contractor.
- 5.19 **Supply of Materials:** Except where otherwise specified, the Contractor shall, at his own expense, supply and provide all the construction plant, temporary works, materials both for temporary and for permanent works, labour (including the supervision thereof) transport to or from Site and in and about the works and item of any kind required for the contractions, completion and maintenance of the works.
If the Employer has undertaken to supply materials specified in the Special Conditions of Contract or otherwise at terms stated therein, the Contractor shall keep himself in touch with the day to day position regarding the supply of materials from the Engineer and shall so adjust the progress of the work that his labour may not remain idle nor may there be any other claim due to arising from delay in obtaining the materials. No claim, what so ever shall be entertained by the Employer on account of delay in supplying materials or in the event of its inability to such supply at all.
- 5.20 **Idle labour/Machinery:** No claim on account of idle wages of the labour or idle Charges for machineries engaged shall be entertained under any circumstances.
- 5.21 **Liquidated Damages:** The work shall throughout the stipulated period of the Contract be proceeded with due diligence. The Contractor is to complete the contracted quantity within the time as stipulated in the Contract. However, if no monthly target is separately specified, the contracted quantity would be prorated monthly and treated as the monthly target.

If the Contractor fails to fulfill the quarterly target during the quarter and/or as required by the Company, Liquidated Damages (L.D) not as a penalty equal to 10% of the value of left out quantity will be recovered. However the total L.D during the entire tenure of the Contract shall be subjected to a maximum of 5% of the Contract Value. Final reconciliation shall be done at the end of the Contract period and adjustment of L.D if any, shall be done. For the purpose of calculation of L.D, quarterly review shall be done.

If the L.D so imposed exceeds the Security Deposit of the Contractor then the Employer may deduct the same from the amount due to the Contractor in any other Contract. This is, however, without prejudice to any other right of recovery that the Employer may have against the Contractor in this regard under the law.
The deduction of such damage as referred above shall not however relieve the Contractor from his obligations to complete the work in time as stipulated in the Contract.

However, if the short fall exceeds 30 % during the quarter, the Company reserves the right to terminate the Contract without any Notice and get the job completed through any other means including engagement of other agencies at the Contractor's risk and cost.
- 5.22 **Lien:** The Employer shall have a first and foremost lien upon the plant, machineries and materials of the Contractors against its all dues and till the same are paid off by the Contractor, the Employer shall have a exclusive right to retain its all aforesaid goods and materials.

As the Contract includes the Operations and Maintenance of Plant and equipment, the Contractor will be held responsible for loss, destruction or deterioration of the Plant, machineries and materials, because of any alleged inadequacy in maintenance. The Company will be entitled to be reimbursed by the Contractor, any cost incurred towards ensuring the safety and security of the plant, machineries and materials in its custody, when it exercises its security of the plant, machineries and materials in its custody, when it exercises its lien.
- 6.0 **LABOUR:**
- 6.1 **Compliance with Labour Statutes:**
The Contractor shall comply with all the obligations under the Contract Labour (Regulation and Abolition) Act, 1970, the Factories Act, the Minimum Wages Act, the Payment of Wages Act, the Employees, Provident Funds and Pension Act, the Payment of Gratuity Act, the Industrial Dispute Act, the Maternity Benefit Act, the Employee's State Insurance Act, the Workmen's Compensation Act, and all other labour statutes for the time being in force, and applicable to the works. The Contractor agrees to keep the Principal Employer/Company indemnified at all times against any demands from the labour or statutory authorities on this account.
- 6.1.1 **Contract Labour (Regulation & Abolition) Act, 1970:** The Contractor is required to produce license as enjoined in the Contract Labour (Regulation & Abolition) Act, 1970, if the Act is applicable to him. The Contractor shall obtain License from the appropriate Licensing Officer of the area before commencement of the work and shall produce a copy thereof of the work along with the original to the Engineer immediately on start of the work. The original will be returned to the Contractor after verification. He shall not be allowed to undertake or execute any work through Contract labour except under, and in accordance with, a License issued under the said Act in that behalf by authorized Licensing Officer.

The Contractor shall thoroughly familiarize himself with the provisions of the Contract Labour (Regulation & Abolition) Act, 1970 and rules there under, and submitted Certificate to the Engineer in charge of the work indicating whether the provisions of the said Act and rules are applicable to him. In case the said Act and rules are applicable, the Contractor shall take all steps to comply with their provisions, maintained records and registers as required, submit reports and returns to the prescribed authorities periodically as required, Issue emplacement cards/service certificates and display Notice in accordance with Contract labour rules, with copies thereof to the Company.

The Contractor shall arrange provision of rest room, canteens, latrines and urinals, washing facilities and first aid facilities strictly in accordance with the provision of Contract labour rules. If these facilities are not provided by the Contractor with in the stipulated time, the same will be provided by Company and the cost for the same will be debited to the Contractor's account.

The Contractor shall pay wages to his labour in a manner laid down in Contract labour rules, in the presence of the Engineer (Principal Employer), or his authorized representative. He shall at least pay the minimum wages applicable under the Minimum Wages Act. In case the Contractor's labours perform the same or similar kind of work as workmen directly employed by the Principal Employer, the wages rates, holidays, hours of work other conditions of service of the workmen employed by the Principal Employer shall be applicable to the Contractor's labour also. The Contractor shall notify to the Engineer the date and place of payment of wages, who shall nominate a representative to witness the payments. The Contractor shall also submit to the Engineer a copy of the Wage Payment Sheets, which have been receipted by the Contractor, and counter-signed by the representative of the Engineer. By virtue of default of the Contractor, or otherwise, if the Company is obliged to provide amenities and/or pay wages labour employed by the Contractor directly, or through Sub-Contract (s) under this Contract, then the Contractor shall indemnify the Company fully, the Company shall be entitled to recover from the Contractor the expenditure incurred on providing the said amenities, and/or the wages so paid by deducting it from the Security Deposit or from any sum payable by the Company to the Contractor, either under this or under any other Contract.

Provided that if any dispute arises as to expenditure incurred by the Company on provisions of the said amenities, the decision of the Engineer there of shall be final and binding.

- 6.1.2 **Standing Orders:** The Contractor shall make his own Standing Orders for the employees engaged by him and get the same approved through the concerned Regional Commissioner or other appropriate authority and implement the same in conformity with provisions of Industrial Employment Standing Orders Act. In absence of such Standing Order the Model Standing Order shall be implemented.

- 6.1.3 **Payment of Wages Act:**
The Contractor shall comply with the provisions of the Payment of Wages Act, 1936 and the Rules there under in respect of all persons employed by him in carrying out this Contract. Any dispute regarding the statutory payment, which may arise, shall be immediately settled by the Contractor with his workmen.

- 6.1.4 **Minimum Wages Act:**
The Contractor shall comply with the provision of the Minimum Wages Acts 1948 and the Rules made there under by the Central Govt. in respect of all employees employed by him in carrying out this Contract. He shall pay the employees, wages not less than the minimum rate of wages, as notified by the West Bengal Govt. from time to time or settled under any settlement award, whichever is higher for that Category. The Contractor shall make all payments to the labors in the presence of authorized representative of the Employer. The Contractor shall also submit to the Engineer a copy of the Wage Payment Sheets in proof of having paid wages to the various laborers with due counter signature by the representative of the Employer.

The Contractor shall at all times indemnify the Employer against all claims arising out of provisions of the Minimum Wages Act and the Rules framed there under as admissible in respect of any workman employed by the Contractor in carrying out the Contract and against costs and expense incurred by the Employer in connection with and without prejudice to other means of recovery. The Employer shall be entitled to deduct, from any money which is due to or which shall become due to the Contractor whether under this Contract or any other Contract, all money paid or payable by the Employer by way of wages and other dues (including compensations, penalty, if any) imposed for committing breach of any provision of the Act by the Contractor in connection with any claim thereto and the Contractor shall abide by the decision of the Employer as to the sum payable by the Contractor under the provisions of this Clause.

- 6.1.5 **Amenities to Labour:**
In respect of labour employed by the Contractor on the work, the Contractor shall provide at his cost reasonable amenities for security, proper working and living conditions such as canteen facilities, safety appliances, first aid facilities etc. The facilities like toilets, drinking water arrangement etc. provided by the Employer to the use of workmen are to be kept in a clean and sanitary conditions satisfactory to the Engineer. Where women labour is employed, urinals and lavatories will be provided separately by the Employer for the infant children of women labourers also in clean and sanitary conditions satisfactory to the Engineer. Labourers engaged shall be provided there under with necessary safety appliances as free of charge required under the provisions of Factory's Act and regulations made by the Contractor.

- 6.1.6 **Medical facilities:**
First Aid and Ambulance facilities shall be provided by the Contractor to his labourers in case of accidents/emergency requirements. He must ensure full medical coverage under ESI scheme, wherever statutorily required to do so, or provide medical facilities, where coverage under ESI scheme is not mandated. He must take out insurance coverage of the Contract labour for liability under ESI scheme, and other statutory sickness accident benefit scheme, and provide the Engineer with copies of documentary evidence of the same. Medical facilities at the Company's Hospital/Dispensary, wherever possible, shall be provided on payment of charges applicable to outside parties as per Company's Rules. No free medical treatment shall be provided by the Employer to the Contractor's labourers.

- 6.1.7 **Inspection and Investigations:**
The Contractor's establishment will be subject to inspection, investigation etc. by Engineer or such other representatives of the Employer as duly authorized on behalf of him, assuring proper and faithful compliance of the provisions of this Contract by the Contractors particularly with regard to the implementations of Labour Laws and other matter anticipated herein. The Contractor shall abide by the decisions and orders of the Engineer with regard to any such matter and furnish, if required necessary compliance report within the stipulated time.

- 7.0 **OBLIGATION OF THE CONTRACTOR REGARDING OBSERVANCE OF VARIOUS OTHER STATUTES:**
The Contractor shall, at his own cost, observe, perform and comply with the provisions of all statutory enactments, rules, regulations and bye-laws framed hereunder as are applicable for control/operation/regulation of Plant, during the execution of work and shall maintain such registers, documents, records etc., as are required under the various statutes, for production of the same before the Employer and/or other statutory authorities prescribed in this behalf, as and when required. No-compliance of the provisions/stipulations of these Acts/Rules will render the Contractor liable to payment of necessary compensation/penalty, as

deemed fit by the Employer/statutory authorities. It will be the sole responsibility of the Contractor to ensure all kinds of statutory payments to his workers and submission of returns etc., to various statutory authorities in time.

In case of Contractor's default in making statutory payment in time, the Employer reserves the right to deduct necessary amount from the Contractor's towards such payments. In case the Contractor fails to supply the required Safety Equipments to his workers then the Company reserves right to supply the same Equipments and deduct cost of such materials and cost of storage from the Contractor's bill. The Contractor should also ensure that his workers used the Safety Equipments during work.

The Contractor shall be fully responsible to comply with all applicable statutory obligations as Employer, e.g., all contributions under P.F. and Pension scheme (EPF) etc. under the Employees Provident Fund and Misc. Provisions Act, 1952, State Insurance Act, 1948, benefits under the Maternity Benefit Act, 1961, payment under Payment of Gratuity Act, Payment of Bonus Act, Industrial Dispute Act, etc., and all other such obligations/liabilities in respect of their labour engaged by them for the job under taken under the Contract as per applicable statutory provisions/law and Govt. Notifications, and will take full liability on this account. The Company will not take any financial liability on this account. In the event of failure of the Contractor to comply with the above, the Company shall be entitled to recover the amount by deduction from any amount payable to the Contractor under the Contract, including Security Deposit, or as debt payable by the Contractor.

8.0 WORK MATERIALS & PLANT:

8.1 Removal of improper work, equipment & materials: The Engineer shall during the progress of the work, have power to order in writing from time to time the following:

- a) The removal from Site within such time or times as may be specified in the order, of any materials/equipment which in the opinion of the Engineer are not in accordance with the Contract.
- b) The substitution of suitable equipment and/or materials.
- c) The removal and proper re-execution, not-withstanding any interim payment there against, of any work which, in the opinion of the Engineer is not in accordance with the Contract.

8.2 Default of Contractor in compliance:

In case of default on the part of the Contractor in carrying out such Order, the Employer shall be entitled to employ and pay other persons to carry out the same and all expenses consequent thereon or incidental thereto shall be borne by the Contractor and shall be recoverable from him by the Employer or may be deducted by the Employer from any money dues or which may become due to the Contractor.

8.3 Suspension of work:

The Contractor shall on the written Order of the Engineer suspend the progress of the work or any parts thereof for such time in such manner as the Engineer may consider necessary and shall during such suspension, properly protect and secure the work as is necessary in the opinion of the Engineer. If the progress of the works or any part thereof is suspended on the written Order of the Engineer for more than ninety days, the Contractor may serve a written Notice on the Employer requiring permission to resume the suspended work with a further period of 30 days from the date such Notice is received by the Employer. If such permission is not granted within that time, the Contractor, by a further written Notice to serve, may elect to treat the suspension as termination of the Contract, without any financial repercussion to either the Employer or to the Contractor.

8.4 Free Access: The Employer and/or Engineer and any person authorized by them shall at all times have access to the works at Site and the Contractor shall afford every facility for and every assistance to, in obtaining the right to such access.

9.0 COMMENCEMENT TIME & DELAYS:

9.1 Commencement of work:

The date of effect of the commencement of the Contract shall be reckoned from the date as specified in the Work Order or the date of taking possession of Site, whichever is earlier, after deposit of Security amount.

9.2 Possession of Site:

Save, in so far as the Contract may prescribe, the extent of portions of the Site of which the Contractor is to be given possession from time to time and the order in which portions shall be made available to him and subject to any requirement in the Contract as to the order in which the works shall be executed, the Employer will with the Engineer's written order to commence the work, given to the Contractor possession of so much of the Site as may be required to enable the Contractor to commence and proceed with the work in accordance with such reasonable proposals of the Contractor as he shall by Notice in writing to the Engineer make and will from time to time as the work proceeds, give to the Contractor possession of such further portions of the Site as may be required to enable the Contractor to proceed with the work with due dispatch in accordance with the said proposals.

9.2.1 In case the Contractor delays to take possession of the Site within the time specified in such written order/information/instruction from the Employer or his representative, and the delay subsequently result in further delay/complications, for extension of Contract the sole responsibility of such delay/complications shall be resting with the Contractor.

9.2.2 Without prejudice to the rights of the Employer and without any manner affecting the duties of the Contractor, if in the opinion of the Engineer, the Contractor has failed or is likely to fail to carry out any part of the work and such failure or apprehended failure might result in the delay in supply of the items to be produced as per plan, any loss or damage to the Company, then the Engineer may cause any part of the work to be carried out departmentally or through other agencies and all expenses incurred by Employer in excess over the Contract rate shall be recoverable from ad-hoc/monthly/fortnightly 'on-account' bills of the Contractor. The decision of the Engineer in regard to the exercise of this provision as well the recovery of additional expenses incurred by the Company is final and binding on the Contractor. Once Contractor takes possession of the Site as per written order of the Employer, the responsibility of security and protection of the Site from any complication shall be the sole responsibility of the Contractor.

9.2.3 Compliance with Statutes: The Contractor shall at his own cost, observe, perform and comply with the provisions of the following Acts applicable during the execution of the Contract, and Rules/Bye-Laws framed hereunder including but not limiting to the following and shall maintain such registers and documents as are required under the various statutes, for production of the same before the Company and/or other statutory authorities, prescribed in this behalf, as and when required. The Contractor agrees to

keep the Employer indemnified at all times against any demands/penalties by statutory authorities, and shall defray to the Employer any costs/suspense's incurred by the Employer in proceedings before the statutory authorities. A list of the relevant laws applicable to the process of execution of Work under the Contract is given below. The list is illustrative and not exhaustive.

- i. The Contract Labour (Regulation & Abolition) Act, 1970 & Rules framed there under.
- ii. The Payment of Wages Act, 1936.
- iii. The Employees' Provident Fund Act, 1952 & Schemes framed there under
- iv. The Maternity Benefit Act, 1961.
- v. The Payment of Bonus Act, 1965.
- vi. The Industrial Disputes Act, 1947
- vii. The Payment of Workmen's Compensation Act, 1923
- viii. The Minimum Wages Act, 1948
- ix. The Payment of Gratuity Act, as and when applicable.
- x. Air & Water pollution Acts
- xi. Environment Protection Act, 1986 and Environment protection rules, 1986

9.2.4 **Waiver:** The non-enforcement of any of the terms and Conditions of the Contract strictly by any party to the Contract would not amount to waiver of those terms in favour of the other party.

10.0. **REMEDIES AND POWER:**

10.1 **Anticipatory breach and Termination: Risk and Cost:**

If the Contractor shall neglect to execute the work with due diligence and expedition or, shall refuse or neglect to comply with any reasonable orders given to him in writing by the Engineer in connection with work or shall contravene any provision of the Contract, the Company/Employer may give seven (7) days' notice in writing, to the Contractor, to make good the failure, neglect or contravention complained of. If the Contractor shall fail to comply with the Notice within the stipulated period from the date of service thereof in the case of a failure, neglect, or contravention capable of being made good within that time, then and in such case the Employer shall be at liberty to employ other workmen, and forthwith perform such work as the Contractor may have neglected to do.

If the Employer shall think fit, it shall be lawful for him to take the work wholly, or in part, out of the Contractor's hands and give it to another person on Contract at a reasonable price or provide any other materials, tools tackle or labour for the purpose of completing the work, or any part thereof, and in that event the Employer shall without being responsible to the Contractor for fair wear and tear of the same, have the free use of all the materials, tools tackles, or other things which may be on the Site, for use at any time in connection with the work to the exclusion of any right of the Contractor over the same. The Employer shall be entitled to retain and apply any balance, which may be otherwise due on the Contract by him to the payment of the cost of executing such work as aforesaid, and shall be entitled to make a claim for the balance amount, in accordance with law.

10.2 **Bankruptcy and Breach:**

If the Contractor becomes bankrupt or have an order for appointment of any receiver made against him or shall present any petition in bankruptcy or shall make an arrangement with or assignment in favour of his Creditors or shall agree to carry out the Contract under Committee of inspection of his Creditors or being a Corporation shall go into liquidation (other than a voluntary liquidation, for the purpose of amalgamation, absorption or reconstruction) or if the Contractor shall assign the Contract without the prior consent in writing of the Employer, or shall have an execution levied on his goods, or if the Engineer shall certify in writing to the Employer that in his opinion, the Contractor;

- a. Has abandoned the Contract or,
- b. Without reasonable excuse has failed to commence the work or has suspended the work for 7 days after receiving from the Engineer written Notice to proceed or,
- c. Is not executing the works in accordance with the Contract or is persistently or flagrantly neglecting to carry out his obligations under the Contract or,
- d. Has to the detriment of good workmanship or in defiance of the Engineer's instructions to the contrary sublet any part of the Contract or,
- e. Otherwise failed to perform his part of the Contract according to the true intent and meaning thereof.

Then the Employer may after fixing 7 days' Notice in writing to the Contractor, enter upon the Site and expel the Contractor therefrom, without thereby avoiding the Contractor or releasing the Contractor from any of his obligations or liabilities under the Contract or affecting the rights and powers conferred on the Employer or the Engineer under the Contract or otherwise available under the law, may appoint any other Contractor to complete the work at the cost and risk of the Contractor. However on happening of any eventualities as per above Sub Clause 10.2 (a) to 10.2 (e) the Employer shall be at discretion to terminate the Contract by giving 15 days' Notice and the Contract shall stand/terminated w.e.f the 16th day from the date of issue of this Notice. In any of the eventualities mentioned above in (a) to (e), the Employer shall have right to take possession of the plants and machineries of the Contractor and relies the dues by sale of the said plants and machineries.

10.2.1 **Valuation in case of forfeiture:**

The Engineer shall as soon as practicable after any such entry and expulsion by the Employer fix and determine such investigation or Enquiries as he may think fit to or institute and shall certify what amount (if any) had at the time of such entry and expulsion been reasonably earned by or would reasonably accrue to the Contractor in respect of work actually done by him under the Contract.

10.2.2 **Payment after forfeiture:**

If the Employer shall enter & expel the Contractor under this Clause, he shall not be liable to pay to the Contractor any money or account of the Contract until the expiry of the period of Contract and thereafter until the costs of completion and damages and all other expenses incurred by the Employer have been ascertained. The Contractor shall then be entitled to receive only such sums (if any) as the Engineer may certify to be due to him upon the completion by him after deducting the said amount payable to Employer. But if such amounts shall exceed the sum which would have been payable to the Contractor on the completion by him then the

Contractor shall upon demand pay to the Employer the such excess amount and it shall be deemed a debt due by the Contractor to the Employer and shall be recoverable accordingly.

10.2.3 Illegal gratification, breach of Contract:

The Contract may also be terminated and the Contractor shall be liable to make good any loss or damage resulting from such cancellation (specified under Clause 10.1). If any bribe, gratuity, gift, loan reward or advantage pecuniary or otherwise shall either directly or indirectly be given, promised or offered by the Contractor or any of his servants or agents to any person employed by the Employer in any way relating to his office or employment or if any such person shall become in any way directly or indirectly interested in the Contract or if the Contractor has committed a breach of any of the terms of the Contract and in particular Minimum wages Clause and Labour regulations.

10.3 Retention of Dues:

The Employer will have full liberty to retain and set off all sums due or to become due to the Contractor whether under this Contract or under any other transaction or claim whatsoever, against any sum due or to become due to the Employer under this Contract or any other transaction or claim whatsoever.

11.0 FINAL CERTIFICATE:

The Contract shall not be considered as completed until a Final Certificate has been signed and issued to the Contractor by the Employer stating that the Work has been completed in accordance with the terms of the Contract.

12.0 NOTICE:

12.1 Service of Notice on Contractor:

Any Notice given to the Contractor under the terms of the Contract shall be served by the Engineer or his representative by Registered Post/Courier to, or leaving the same, at the Contractor's notified address or its registered office or at the Contractor's Site office.

12.2 Service of Notice of Employer:

Any Notice to be given to the Employer under the terms of the Contract shall be served by sending the same by Registered Post/Courier at the Office of the Employer at SAIL Growth Works, Kulti.

12.3 Change of address: Any change of address of the Contractor shall immediately be notified to SGW, Kulti.

13.0 MISCELLANEOUS:

13.1 Adequate storing to be provided:

The Contractor shall at his own cost provide adequate storing at all work such that no damage, injury or loss is caused or likely to be caused to any person or property.

13.2 Provision of shed, stores, houses etc.:

The Contractor shall at his own cost provide such sheds, stores, and houses as the Employer may consider necessary for storing materials.

13.3 Work in or around the running plant:

When work is being carried out in or around a running plant/where the plant must run uninterrupted, the Contractor can only work at specified places and times mutually, arranged. Progress of work in certain areas might have to be expedited as required by the Employer and the Contractor must take this factor into consideration when working out his Rates.

13.4 Use of intoxicant:

The Contractor shall prohibit the possession, use and sales of ardent spirits or other intoxicating beverage upon the work or in any of the boarding, houses, encampments or other tenements owned occupied by or within the control of the Contractor or any of his employees. Any Contractor or Sub-Contractor personnel determined by the Company, in its sole discretion, to be in violation of the ban against narcotics, drugs and intoxicants will be prohibited from working on the Contract.

13.5 Penalty for Accident: In case any accident involving any Contract work person or any violation reported by any authorized person during the Contractual operation at SGW, Kulti while performing the Contract, a penalty shall be charged on the Contractor as indicated below, over and above the statutory responsibility of the Contractor for payment of Compensation;

Sl. No.	Type of Accident / Violation of Safety Regulation	Penalty of each case		
		% of Contract Value	Minimum (In Rupees)	Maximum (In Rupees)
1.	Fatal Accident	2 %	10,000/-	50,000/-
2.	Serious Accident	0.5%	5,000/-	25,000/-
3.	Reportable Accident	0.1%	1,000/-	5,000/-
4.	Any repeated violation of the safety instruction by the Authorized Person.	0.05%	100/-	500/-

The amount of Penalty as above will be deducted from his running on account bill (in a maximum of 2 subsequent installments) and if not possible, from the Security Deposit.

However, in the subsequent Investigation/Enquiry Report made by the Committee duly approved by Competent Authority, it is proved that the Contractor has taken all reasonable steps to ensure the safety of his workmen and the causes contributing to the accidents is beyond the control of the Contractor, then the amount deducted may be refunded to the Contractor with the approval of Competent Authority without any interest.

13.6 Policing of the work:

Should the general conduct of the works including the premises of the Employer under occupation of the Contractor lead to violation of any of the provisions of the Indian Penal Code either in consequence of riotous or illegal proceedings of the Contractor's labour or Supervising staff or others to such an extent as to necessitate the deployment of Special Police or Magistrate, the cost of such extra forces is to defrayed by the Contractor and not by the Employer.

- 13.7 **Signature of receipts for amount:**
Every receipt for money which may become payable or for any deposit which may become transferable, notwithstanding to the contrary contained in the partnership deed, if in the name of partnership, signature on receipt by any one of the partners of a Contractor firm be a good and sufficient to the Employer in respect of the money, and in the event of death of any Contractor partners during the currency of the Contract, it is hereby expressly agreed that every receipt by any one of the surviving Contractor-partners shall, if so signed as aforesaid, be a good and valid discharge, as aforesaid, provided that nothing in this Clause shall be deemed to prejudice or effect any claim which the Employer may hereafter have against the legal representative of any deceased Contractor partner for or in respect of any breach of any of the conditions of Contract, and provided also that nothing in this Clause shall be deemed to prejudice or affect the respective rights or obligations of the Contractor-partners and of the legal representatives of any deceased Contractor-partner's interest.
- 13.8 **Law in force in relation to Contract:**
The Contract or amendments thereof entered into between the Employer and the Contractor under the Contract shall be governed and regulated by the relevant laws for the time being in force in the territory of India relating to Contracts.
- 13.9 **Change in Constitution of Firm:** If the Contractor is a Partnership firm, the contractual relationship shall be deemed to have terminated if there is any change in the constitution of the firm, whether by retirement, introduction of new partners or otherwise, unless such change has the previous written approval of the Employer, notwithstanding that the Employer may have other dealings with such reconstituted firm. In the event of death of one of the partners, the Contractor shall immediately inform the Employer, giving necessary particulars of the heirs and legal representatives of the deceased partner, and it shall be the option of the Employer either to continue the contractual relationship with the said reconstituted firm, or to treat the Contract as having being terminated by such supervening events, and the decision of the Employer in this regard will be binding on all the partners concerned. No claim for compensation/damages on premature termination will be made or sustainable against the Employer on account of such termination.
- 13.10 The Contractor shall make his own arrangements for transporting equipment required by him, obtain prior permission for bringing into Plant/Factory or carrying/removing from the Plant/Factory of such equipment. No such permission for removing/carrying of any equipment by the Contractor from the Plant shall be granted unless he has cleared his outstanding to the Employer, nor shall he be entitled for any compensation on this account.
- 13.11 The Contractor shall not allow any visitor on the Work Sites, without the prior permission of the Engineer.
- 14.0 **ARBITRATION:**
- 14.1 **Reference of Disputes to Conciliation/Arbitration:** All disputes or differences arising out of the Contract, except disputes or differences for which separate provisions for their resolution have been made in the Contract ('excepted matters'), shall be settled by Conciliation or Arbitration in accordance with the Arbitration and Conciliation Act, 1996, and the provisions made hereinafter in this Article. Such dispute shall first be referred to Conciliation by a Conciliator selected mutually by the parties, who shall also decide the fees/remuneration and the rules of Procedure, which shall be flexible.
- 14.2 **Rules for Arbitration:** Rules of Conciliation & Arbitration (2003) framed by SCOPE forum of Conciliation & Arbitration will be applicable in case of this Contract. The expenses, what so ever related to Arbitration will be equally born by both the Parties.
- 14.3 **Work to continue during Conciliation/Arbitration:** Work under the Contract shall be continued by the Contractor during the arbitration proceedings and recourse to arbitration shall not be a bar to continuance for the work.
- 15.0 **AMENDMENT:**
Except to the extent expressly set forth in the Contract, no change in or modification, termination or discharge of this Contract, in any form whatsoever, shall be valid or enforceable unless it is writing on stamp paper of requisite value, and signed by the party to be charged therewith or its duly authorized representative.
- 15.1 It shall be the responsibility of the person submitting the tender to ensure that the tender have been submitted in the formats and as per the terms and conditions prescribed in the SAIL Website and no change is made therein before submission of their tender. In the event of any doubt regarding the terms and conditions/formats, the person concerned may seek clarifications from the authorized officer of SAIL Growth Works, Kulti. In case any tampering/unauthorized alteration is noticed in the tender submitted from the tender document available on the SAIL Website, the said tender shall be summarily rejected and the Company shall have no liability whatsoever on the matter. However, deviation if any proposed by the tenderer may be separately indicated for acceptance or otherwise of SAIL Growth Works, Kulti. Such proposed deviation will not be treated as tampering for the purpose of application of this Clause.
16. The terms and conditions in the Tender form are final for all purpose and no other terms and condition contrary or in variation or additions to what are contained therein shall be accepted by the Company unless the same is contained in any formal Agreement duly executed by the Company and the Tender / Contracts.
17. No subsequent correspondence on the Tender initiated by me / us will be entertained by the company.
18. Canvassing in any form is strictly prohibited and that if I / We do resort to canvassing the Tender submitted by me/ us will be liable to rejection.
19. Unless and until a formal "Agreement (in Company's prescribed form) is prepared at my / our cost, the Invitation to Tender, offer of myself/ourselves in this Tender form, the GTC of Contract and the written acceptance of the offer or so much of the same by the Company, shall constitute a binding Contract between the Company and myself / ourselves until the said "Agreement" (in company's prescribed form) is executed.
20. All Tenderers are to note that minimum wages / Basic Plus DA plus VDA payable to labourers as per rules in force, and take this into account in tendering firms rates which will apply during entire tenure of the Contract i.e. no escalation will be paid even on account of change in VDA They make seek clarification, if any, from Contracts Dept& Personnel Dept. & quote accordingly.
21. In case the Tenderer back out or withdraws their Tender offer during the validity within which the Tender are to remain open for consideration, The Tenderer's Earnest Money will be forfeited. This provision for forfeiture shall also apply to the offer that might be made by the Tenderer after negotiations and discussion with IISCO Steel Plant, subsequent to the opening of the Tender. The valid period of the Tender offer shall be considered as that indicated in Invitation to Tender and including also the period as per

subsequent written confirmation the Tenderer for further extension of validity, if any, beyond that indicated in the Notice Inviting Tender.

22. In case the L-1 Tenderer backs out he/ they shall be debarred from participation in all types of Tenders for 6 (Six) months.
23. Negotiation: The Company reserves the right to invite / call any Tenderer/s for discussions /negotiations as may be decided after opening of Tenders. Non-compliance by the Tenderer to attend negotiation sub- negotiations/ discussion shall render his /their Tender liable to rejection with forfeiture of Earnest Money without further reference. It is to be noted that holding of discussion / negotiations is the prerogative of Management and there will be no claim on the part of tenderer/s to ask for discussion / negotiations.
24. If my /our Tender is not accepted, I /we shall not be entitled to claim any costs, charges, expenses of and incidental to or incurred by me/us through or in connection with my/ our submission of Tender even through the Company may elect to withdraw the invitation to Tender.
25. Mere sale /issuance of Tender paper does not bind the Company in any way in respect of the proposed Contract with the purchaser of Tender paper.
26. JURISDICTION: The Asansol Court shall have the exclusive jurisdiction upon any matter arising out of this Contract

(R S Mahawar)
GM (CC, M.Shop & Pers.),I/C P&A

Annexure II
General Rules and Regulations governing conduct of Online Reverse Auction.

1. Brief description of the tender processing for On-line Reverse Auction is given below:

1. Bidders submit their techno commercial bid along with all the required documents as per the terms of enquiry, which are opened on the due date of opening of quotation.
 2. All the Bidders whose offers are found techno-commercially acceptable become eligible for participating in price bidding through On-line Reverse Auction over Internet.
 3. Non-placement of bid by an eligible bidder during the Reverse Auction event may adversely affect consideration of the bidder for the subsequent RFQ's.
 4. The mjunction would intimate Date & Time for Start of Reverse Auction & duration of auction to the Bidders in advance. Login ID & Password specific to each Bidder is given and demonstration of bidding (On-line) process is given to enable each Bidder fully understand the process of bidding On-line.
 5. Thereafter, at scheduled time the screen for On-line bidding is launched wherein the Bidder would put in their best offers through On-line bids in which the Start Bid Price can be reduced by the Bidders to secure orders for the supply of items/services.
 6. All eligible Bidders having password can view the bidding screen after acceptance of online declaration on the computer screen and also enter their prices any number of times during the duration of bidding.
 7. If it has been decided at tendering stage to distribute the Tendered quantity to more than one Bidder then after conclusion of reverse auction a screen for online matching of lowest price by all Bidder who have participated & placed a valid & accepted bid in the immediate previous stage, other than the L1 bidder, would be launched. Bidders other than L1 can confirm matching on L1 price on the screen.
- The quantity would be distributed among the bidders based on the ranking of bidders at the conclusion of reverse auction and order would be placed on predetermined no. of parties from among the bidders who have placed their bid in all previous stages and matched L1 price.

2. Service Provider:

For conducting the Reverse Auction, Steel Authority of India Limited (SAIL) has engaged the services of **mjunction services Limited** for conducting the Reverse Auctions. mjunction is fully authorized to give clarifications / coordinate with the Bidder on behalf of SAIL w.r.t. conduct of Reverse Auction. Their address and contact details are as given alongside.

3. Role of Service Provider

Mjunction services limited is the agency (operator) primarily providing the platform for conducting the Reverse Auction. As the agency providing the auction engine, the role of SP would include:

- i. Setup the auction based on tendered item details and bidding rules as mentioned in tender document.
- ii. Providing access through user-id protected by password to the approved bidders to participate in the auction.
- iii. Enhancing bidder awareness by providing them the details / steps of auction process to enable them participate in Reverse Auction and comfort with the auction mechanism and bidding rules.
- iv. Summarizing auction proceedings and communicating the outcome to SAIL.

4. Role of the Bidder

The role of the bidder is outlined below:

- i. Give consent to online declaration containing Terms and Conditions pertaining to auction before the participation in online auction. Access to auction mechanism shall be provided only after such consent. Failure to provide any response to online declaration will be considered as rejection of the declaration & participation of vendor for such event will be denied.
- ii. Ensure that user-id and password to access the auction is not revealed to unauthorized persons.
- i. Mjunction will explain the Reverse Auction process to all the prospective bidders and clarify issues, if any. It will be the responsibility of the tenderers to get them acquainted to their satisfaction with the On-line bidding process by thoroughly interacting with the Mjunction. Only SAIL will be empowered to approve any deviations from the RFQ document asked for by the Supplier Participate in the Reverse Auction with the aim of bidding to secure the auctioned items in the auction (being selected for supplying SAIL's requirement in a Reverse Auction).
- ii. Convey last quoted price in writing to junction immediately after close of Reverse Auction.
- iii. Provide breakup of quoted price (if required) within stipulated time as mentioned in tender document or otherwise communicated.
- iv. In the event of winning an allotment, fulfill all obligations under the contract.

5. Conduct of the Reverse Auction.

The Reverse Auction shall be conducted on pre-specified date & time communicated to all approved & eligible bidders through Auction notice.

In the event of any problems being faced in the smooth conduct of the auction, Mjunction shall have the right to undertake one or more of the following steps:

- Cancellation of auction/bid.
- Locking of bidders account (suspension of operations in the account) etc.

Such intervention may even happen without seeking prior concurrence of SAIL. MJ shall notify SAIL, clearly stating reasons, of such cancellation / suspension.

6. Standard Instruction and General Terms & Conditions:

The **Standard Instruction and General Terms & Conditions** provided herein govern the conduct of On-line Reverse Auctions operated by Mjunction. These rules cover the roles and responsibilities of the parties in the On-line Reverse Auctions on the Mjunction platform. **Unconditional Acceptance to these General Terms & Conditions is a prerequisite for securing participation in the On-line Reverse Auctions on the Mjunction platform.**

1. During the Auction Bidders shall contact the Auction Room nos. (as mentioned in the auction notice) ONLY for any assistance/clarification regarding online bid submission. All calls to the auction room numbers are recorded for future reference and training. Calls made to any other contact numbers or mobiles (hand phones) will not be entertained during the auction period. Bidders are required to keep sufficient time in hand while calling to auction room during auction. Auction room numbers may be engaged and in case of call being made during last minutes their call may not be connected. Mjunction would not be responsible for any issue arising out of non-reachability / non – accessibility of auction room numbers.
2. Bidders shall ensure stable connectivity & use a fast and reliable internet connection. It is advisable to keep an alternate internet connectivity option in case of exigencies as Mjunction or SAIL will not be responsible for any dis-connectivity or infrastructure failure at bidder's end and / or for reasons not attributable to Mjunction. Manual Extensions (forceful extensions) of auctions will not be provided at the request of a bidder.
3. Bidders are required to clarify all their technical/RFQ and/ or training related queries prior to commencement of the auction. No training related support shall be provided to bidders after commencement of online auction. For any training requirement during the run-time of auction, bidders are required to refer the training module sent to them prior to auction.
4. Bidders are required to be agile and alert during bidding. They shall keep their contact numbers free from any other calls so that Mjunction's representatives can reach them easily whenever required.
Do not register your number with "National Do not Call" service as you may receive auction intimation related SMS on the mobile number provided to us. Bidders are also requested to keep their email inbox open and accessible to receive any mail, if sent, during the event from Mjunction's side.
5. Bidders are required to click on "Sign out" whenever they wish to leave the website. If they do not "sign out" properly and leave the website by closing the window directly they may receive a message at your next login attempt as "You are already logged in. Do you want to close the previous session and continue working". In case of such message please ensure that no other representative of their company is logged in already with their credential before login. In case any bidder has signed out properly from your last session and no other representative of your company is logged in but still receiving the above mentioned message kindly change your password and/or inform Mjunction for any required help.
6. The bids placed by any bidder will only be accepted once they are registered in our server. There may be some delay in the same depending upon the speed and traffic of the internet connection used at bidder's end. To ensure registry of bids please bid at least 3 minutes prior to auction closing time. Bidder's submitting their bid in last moments would be doing so at their own risk.
7. Auction will start as per the prefixed time schedule intimated in Annexure-01 of the Auction Notice. The time indicated in notice is fixed and under no circumstance will this time be changed on bidder's request. It is the responsibility of bidders to take part in the auction on scheduled date and time for which Mjunction would be providing all the necessary training and technical requirement like creating, scheduling the auctions and providing access to bidders to participate in the auctions. In case you are unavailable/not reachable prior to the auction, Mjunction reserves the right to launch and conclude the event on scheduled time without your participation.
8. Mjunction services limited retains the right to cancel or reschedule or relaunch of the Online price negotiation on any of the followings reasons:
 - a. On advice of SAIL
 - b. The number of confirmed Bidders is deemed to be insufficient to conduct the online price negotiation.

Mjunction services limited

Corporate Office:

Address : 3rd Floor, Tower – 1,
Godrej Waterside, Plot – V,
Block – DP, Sector – V,
Salt Lake, Kolkata – 700091,
West Bengal

Contact Name : Sanchita Gupta

Phone : 09163348102

Branch Office :

Address: SAIL-ISP, 1st Floor, New Materials Building
, Order Dept. IISCO Steel Plant, Burnpur-713325
Contact Name: Mr. Abhishesh Chakraborty, Branch
Head- Burnpur.

Phone : 09163348279

Mr. Pradeep Kumar Mohapatra, Ph : +91
7033297436

Email : pradeep.mohapatra@mjunction.in

- c. Majority of the confirmed Bidders are unable to access the module due to infrastructural problems such as sustained/Planned power failure or telecommunication breakdown.
 - d. If there is infrastructural failure at Mjunction's end, resulting in unavailability of auction engine to Bidders for bidding purpose.
- The duration of auction may also vary from the pre-specified period of time on account of termination of the auction by M/s Mjunction services limited on the advice of the SAIL or on its own accord in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process.
9. Bidders will be eligible for participation in the subsequent /next stage of the online price negotiation only if they have participated (placed an accepted & valid bid) in immediate previous stage.
 10. Events which constitute of multiple stages may take more than one day to conclude and/or these stages may be conducted on different days. Please note the completion date-time of the last stage would be considered as completion time of the event.
 11. All organization should note that the executive of the participating organization placing bids online shall be treated as an authorized representative of the organization for participating in the auctions.
 12. User Id and password are the unique combination to ensure that only bidder or their authorized personnel can login to our auction website and participate in auction procedure. Bidders are requested to change the system generated password provided to them at the time of first login. Mjunction or SAIL will not be responsible for any misuse of their Login ID and password. Bidders are responsible for maintaining the confidentiality of their User ID and Password (as also that of "secret question"/ "secret answer" combination, if any) and for restricting access to their computer, computer system and computer network and they shall be held responsible for all activities that occur using their User ID and Password.
 13. Multi log in using the same User ID & Password is not permitted. Please note that you can login with your user id and password from one connection only. In case multiple login happens then second logger will receive a message indicating that someone is already logged in using the login ID. In this scenario, Mjunction request you to ensure whether any authorized representative from your side is logged in to the system or not. In case it is not fact, please intimate any Mjunction representative for the same on immediate basis.
 14. Bids once placed cannot be cancelled / withdrawn/ reversed and Bidders shall be bound to honour their prices submitted at any/all stage of the auction proceedings. If they back out and not supply the materials/service as per the rates quoted, SAIL may take appropriate action against them as deemed fit.
 15. In the event when the stage-2 (online reverse auction / dynamic bidding) is initiated considering the L1 of the previous stage (Stage – 1: Online Sealed Bid event) as the start bid price and the L1 price is accepted by a bidder other than the bidder who placed the L1 bid in the stage-1 and further if there is no more bids, the system shall declare the bidder who has placed / accepted the start bid price in the stage-2 as the L1 bidder of the event. For e.g – Bidder A is the L1 bidder in stage - 1 and in stage-2 the L1 bid is considered as the start bid price. Now in stage - 2, bidder-B accepts the start bid price and there in no further bids in this stage. In such case Bidder- B will be considered as L1 as Bidder-B has accepted the price in stage2.
However, in case there is not a single bid in stage-2 where the start bid price considered is the L1 of stage-1, SAIL shall reserve the right to place the order to L1 bidder of the stage 1 (online sealed bid).
 16. Mjunction is not liable for the expired instruments in the form of EMD/ DD / BG submitted for participation against any particular tender.
 17. Mjunction services limited, does not guarantee continuous, uninterrupted or secure access to its services, and operation of the Website/Portal may be affected by numerous factors beyond its reasonable control. Mjunction services limited shall not have any liability to Bidders for any interruption or delay in access to the site irrespective of the cause.
 18. **Force Majeure** : If at any time during the continuance of this Agreement, the performance of any obligation under this Agreement, in whole or in part by Mjunction, be prevented or delayed by reason of any war, hostility, act of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes, lock-outs, failure of Internet of Mjunction, Technical /Connectivity failure etc. or acts of God (hereinafter referred to as "events") the Bidder shall by reason of such events have no claim for damages, direct and/or indirect, against Mjunction in respect of such non-performance and/or delay in performance.
 19. **Confidentiality** : Bidder recognizes that the information on Mjunction that it will come across during the course of e-Auction is confidential and accordingly for a period of five (5) years after the date of this Agreement shall treat as confidential any and all information hereafter made available to BIDDER directly or indirectly by Mjunction, including verbal explanations as well as any and all documents such as reports, proposals and
- drawings furnished by Mjunction or by third parties having access to information, shall not use information received for any purpose other than the purpose agreed between the parties and shall not disclose any of the said information to any third parties including affiliated companies, either in writing or verbally or by any other means, except to the extent needed for such exercise.
20. **Arbitration**: Dispute or differences arising out or relating to this undertaking/Agreement shall be resolved amicably by the parties. Failing such amicable resolution of dispute / differences either party may refer the matter to arbitration of a Sole Arbitrator to be appointed by the Managing Director of Mjunction services limited. The Arbitration proceedings shall be governed and regulated by the provisions of Indian Arbitration and conciliation Act, 1996 and the rules framed thereunder along with amendment made thereto-up-to-date. The award of the Arbitrator shall be final, binding and conclusive on the parties. The venue for arbitration shall be at Kolkata.
 21. **Jurisdiction** : Bidder consents that Courts at Kolkata shall have exclusive jurisdiction.

7. Limitation of Liability of Mjunction

- a. All commercial/ contractual terms are offered by and agreed to between buyers and sellers alone. Mjunction does not have any control or does not determine or advise or in any way involve itself in the offering or acceptance of such commercial/ contractual terms between buyers and sellers.
- b. Mjunction is not responsible for any non-performance or breach of any contract entered into between users/ Registered Users/Bidders. Mjunction cannot and does not guarantee that the concerned users/ Registered Users/Bidders will perform any transaction concluded on the Website/ Portal. Mjunction shall not mediate or resolve in any manner whatsoever any dispute or disagreement between users.
- c. Mjunction expressly excludes liability for consequential loss or damage or loss of profit, business, revenue, goodwill or anticipated savings, which may arise in respect of the services.
- d. SAIL's decision on award of Contract shall be final and binding on all the Bidders.
- e. Mjunction services limited will not be held responsible for consequential damages, including but not limited to systems problems, inability to use the system, loss of electronic information etc.
- f. Mjunction shall not be liable to the SAIL / bidders in the auction or any other person(s) for any delays in initiating the online auction or postponement / cancellation of the online auction proceedings due to any problem with the hardware / software / infrastructural facilities or any other shortcomings.

8. Right of SAIL

SAIL reserves the right to fully / partly accept the bids or completely reject the same at any stage at its sole discretion.

Definition of Key Terms – Reverse Auction

1. Reverse Auction: Reverse Auction refers to a forum where the requirement for one/more Lots of a Tendered items is stated and the participants are required to bid down the price to be selected to supply the requirement.

2. On-line Reverse Auction: On-line Reverse Auctions refer to those Reverse Auctions conducted through the Internet. In other words, the venue for the auction is on an Internet website/ platform. The Mjunction website (<https://auction.buyjunction.in>) or any other URL assigned by Mjunction would constitute the venue for the purpose of the On-line auction.

3. Award at the Reverse Auction: The bidder quoting the lowest price is normally allotted the Tendered items unless otherwise specified by the SAIL.

4. Buyer i.e. SAIL: SAIL is the individual/business entity who has contracted Mjunction to conduct such Reverse Auction. In case of Reverse Auction, the purpose would be to meet their requirement for Tendered items from among the sellers desiring to sell the Tendered items to the SAIL.

5. Bidder: Bidder is the individual/business entity participating in the Reverse Auction, intending to supply the Tendered items to the SAIL. To become a Bidder in the auction, a business entity has to secure SAIL's approval for participation and also provide written consent to the General Rules and Regulations.

6. Auction Engine: Auction Engine refers to the software that encapsulates the entire auction environment, processing logic and information flows.

Mjunction is the sole owner of the auction engine and retains exclusive right over the utilization of the same.

7. Auction Notice:

The Auction Notice refers to the document provided by Mjunction service ltd prior to the online reverse auction. The purpose of the Auction Notice is to provide approved bidder with the required information and terms specific to the auction as well as general terms & condition pertaining to participation in online reverse auction. Generally an auction notice includes:

- i. Start Time and duration of the Auction stages.
- ii. Item/market description along with bidding quantity.
- iii. Bidding basis for the auction.
- iv. Auto extension time.
- v. General terms & conditions
- vi. Last bid confirmation & Price break up format
- vii. Special instructions (if any)
- viii. Declaration (To be accepted online)

8. Start Time: Start time refers to the time of commencement of the conduct of the On-line auction. It signals the commencement of the Price Discovery process through competitive bidding.

9. Duration of the Reverse Auction: It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing bidders. The duration of the auction would normally be for a pre-specified period of time. However, the bidding rules may state the conditions when the pre-specified duration may be extended/ curtailed. The conditions include:

- a. On sole advice of SAIL
- b. Automatic extension in the event of bids being entered towards the end of the scheduled duration to facilitate the other bidders to view and react to the bid.

10. Auto Extension of the Auction Timings: In the event of bids in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bid. Such Auto Extension shall continue until no bids are placed for the specified period (Engine remains inactive for the specified period). The Inactivity Time for Auto Extension purpose will be specified in the auction Notice. Auto extension is only applicable for Reverse auction stage.

11. End of the Reverse Auction: End of the Auction refers to the termination/closure of the auction proceedings signaling an end to the price discovery process.

12. ID and Password: Password and ID shall be given to all the eligible Bidders by the mjunction for enabling them to participate in the Reverse Auction.

13 Start Bid Price: Wherever indicated, Start Bid Price, is the Maximum Price, which will be accepted by the Reverse Auction engine. Bidder have to quote a price lesser than the Start Bid Price for participating in the Reverse Auction. The auction system shall not accept price higher than start Bid Price for a lot. Start bid price (Wherever applicable) would be displayed on line during reverse auction stage).

14. Minimum Decrement: Minimum Decrement: Minimum decrement is the minimum amount by which, a Bidder has to reduce his bid value in order to beat the latest lowest bid. For example if a bidder bids Rs 10,00,000/- for a market, others, in order to beat this bid, have to quote a lower price with a minimum decrement say of Rs.2,500/- i.e. in order to be eligible they have to quote Rs. 9,97,500/- (or lower) for the same market. This minimum decrement shall be pre-decided by SAIL. Depending upon the auction strategy Bidder may be able to provide decrement in multiple of minimum decrement amount or may be able to reduce any value higher than minimum bid decrement. For Rank bidding event (dynamic price negotiation) Bidder has to reduce his bid from his last quoted bid.

15. Proxy Bid:

In the following circumstances, a bidder may opt for proxy bidding.

1. Where the bidder is not confident of a reliable Internet Connectivity
2. When the speed of Internet Connection is slow and unable to catch-up with the speed of Competitor's bids
3. To remain a leading bidder till the lowest bid value fed in the auction machine.
4. Where the bidder is required to put bids in more than one Market/Lot at a time
5. Bidder is pre-occupied and not in a position to put bids live as the auction is going on. Proxy bid facility safe guard bides from any connectivity issue, infrastructure failure (like: power, link, slow speed, computer etc.) during auction. Proxy bidding also helps when multiple markets/auctions are running at a time.

Proxy facility works in following manner:

You would be able to set a proxy limit with your best bid for the auction. Process to set proxy value:

- a. Place your desired proxy bid amount in 'new bid box'.
- b. Check on the 'Proxy' bid check box.
- c. Check on the 'new bid' Box available at the extreme left hand side of the market.
- d. Click on the submit button available on the bidding screen.

Once a proxy limit is set, system automatically bids on behalf of the bidder by reducing one decrement compared to the L1 bid for the market. Thus it ensures that bidder who has activated proxy will be the leading bidder (L1 bidder) till the proxy limit is reached. Your Proxy bid value is neither known to your competitors nor to Mjunction. It remains undisclosed at the back end of the system. System will continue to revise your bid in stipulated decrements; so long it receives a revised bid from your competitor. In case the system does not receive any revised bid and the market ends, you will be the L1 for that market at the market price prevalent at the time of closure. Even in-case(s) of tie bid (i.e. proxy bid activated from your side and normal bid of that same amount is placed by your competitor), your proxy bid will be declared as lead bid for that time being for that particular market since you have activated proxy bid and your competitor will be shown 'outbid' message.

Note: Proxy bid submission facility can be utilized only in standard reverse auctions (i.e. reverse auctions without template/factor/loading or premium discount /Rank Bidding etc.)

Warning : Proxy bid once activated cannot be deactivated however it can be revised only on the lower side.

Explanatory Note of Proxy Bid Reverse auction stage has started with the Start Bid Price of 200 INR and Bid decrement of 5 INR. You have activated a proxy of 150 INR at the very beginning of the event. In such scenario whenever competitor places a bid, system will itself automatically place a bid on your behalf which would be one decrement lower than the competitor's bid value & ensure that you would be L1 bidder for the market.

Upon due competition the market price has gone down and presently it is at 165 INR, your competitor places a normal bid of 150 INR. System will display 'outbid' message to the competitor for their bid of 150 INR and your bid of 150 INR will be declared as lead bid at that instance of time till any other bid lower than your proxy bid gets registered in the system before closure of runtime of auction.

GST TAXES

1. For the purposes of levy and imposition of GST, the expressions shall have the following meanings:

- (a) GST - means any tax imposed on the supply of goods and/or services under GST Law.
 - (b) Cess - means any applicable cess, existing or future on the supply of Goods and Services as per Goods and Services Tax (Compensation to States) Act, 2017
 - (c) GST Law - means IGST Act 2017, CGST Act 2017, UTGST Act, 2017 and SGST Act, 2017 and all related ancillary Rules and Notifications issued in this regard from time to time.
2. The rates quoted by the Vendor/Supplier/Contractor shall be inclusive of all taxes, duties, levies and Cess except GST. Vendor/Supplier/Contractor has to clearly show the amount of GST separately in the Tax Invoices raised by them. Further, it is the responsibility of the Vendor/Supplier/Contractor to make all possible efforts to make their accounting/IT system GST compliant in order to ensure timely availability of Input Tax Credit (ITC) to SAIL-SGW.
 3. SAIL-SGW shall declare in the Tender about value of free issue of material and services, if any, involved in the execution of the contract. The Contractor should consider the same while working out the GST liability, if any. Further in cases where GST is leviable on any facilities provided by SAIL and used by Vendor/Supplier/ Contractor and the consideration for which is recovered by SAIL-SGW in the form of reduction in the value of invoice raised by Vendor/Supplier/Contractor, then SAIL-SGW will raise GST invoices on such transactions and the same will be borne by Vendor/Supplier/Contractor.
 4. Evaluation of L-1 prices shall be done based on landed cost net of Input Tax Credit of GST, if available to SAIL-SGW. SAIL-SGW shall evaluate the offers on the basis of the quoted rates only and any claim subsequently by the Vendor/Supplier/Contractor for additional payment/liability shall not be admitted and has to be borne by the Vendor/Supplier/Contractor. The supplier under Composition Scheme should carefully understand the implication of Input Tax Credit (ITC) before quoting the rates. Composition scheme is available only in respect of intra-state supply of goods, if taxable turnover of vendor is up to Rs.75 Lakhs.
 5. For the purpose of this contract, it is agreed between the parties that if any new taxes, duties or levies other than GST is introduced subsequent to the final date of submission of tender or reverse auction by the Central/State Government & Local Authorities and such new taxes, duties or levies become payable, then an equitable adjustment on account of new taxes, duties or levies in the contracted price shall be made which shall be subject to the production of documentary evidence by the Vendor/Supplier/Contractor. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows:
 - a. If input tax credit (ITC) is available, the adjustment in contract price for such new tax shall be made.
 - b. In other cases (i.e. where tax credit is not available), adjustment in contract price shall be made only if the new tax is enacted during the period of extension arising out of reasons attributable to SGW.Kulti
 6. In case of variation (increase/decrease) in the rate of GST after the final date of submission of tender or reverse auction, the said revised rate shall be reimbursed or recovered on production of relevant statutory documentary evidence. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows:
 - a. If input tax credit (ITC) is available, the said revised rate shall be reimbursed or recovered.
 - b. In other cases (i.e. where input tax credit is not available), the said revised rate shall be reimbursed or recovered only if the reasons for extension of the contract is attributable to SAIL-SGW. In any case, recovery shall be made in case of a downward variation in the rate of tax.
 7. Vendor/Supplier/Contractor agrees to do all things not limited to providing GST compliant Tax Invoices or other documentation as per GST law relating to the supply of goods and/or services covered in the instant contract like raising of and/or acceptance or rejection of credit notes/debit notes as the case may be, payment of taxes, timely filing of valid statutory Returns for the tax period on the Goods and Service Tax Network (GSTN), submission of general information as and when called for by SAIL in the customized format shared by SAIL in order to enable SAIL to update its database etc. that may be necessary to match the invoices on GSTN common portal and enable SAIL-SGW to claim input tax credit in relation to any GST payable under this Contract or in respect of any supply under this Contract.
 8. In case Input Tax Credit of GST is denied or demand is recovered from SAIL-SGW by the Central/State Authorities on account of any non-compliance by Vendor/Supplier/Contractor, including non-payment of GST charged and recovered, the Vendor/Supplier/Contractor shall indemnify SAIL-SGW in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance. SAIL-SGW, at its discretion, may also withhold/recover such disputed amount from the pending payments of the Vendor/Supplier/Contractor.
 9. Vendor/Supplier/Contractor shall maintain high GST Compliance at any given point of time
 10. Vendor/Supplier/Contractor is required to pass on the benefit arising out of introduction of GST, including seamless flow of Input Tax Credit, reduction in Tax Rate on inputs as well as final goods by way of reduction of price as contemplated in the provision relating to Anti-Profitteering Measure as per CGST Act, 2017.
 11. Vendor/Supplier/Contractor shall avail the most beneficial Notifications, abatements, exemptions etc., if any, as applicable for the supplies under the Goods and Service Tax Act.

TDS FOR INCOME TAX

Tax deduction at source (TDS) shall be made towards income tax from all the bills of the contractor at applicable rates as per Income Tax Act and Rules.